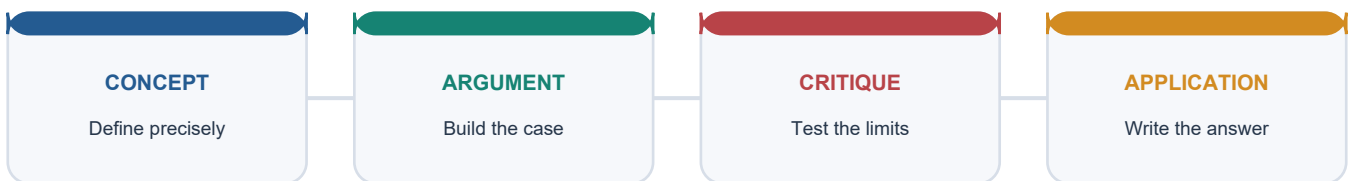


COMPLETE LEARNING SESSION

SCHEDULED AND TRIBAL AREAS - COMPLETE LEARNING SESSION

Core answer-complete learning session with separate advanced depth

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

SCHEDULED AND TRIBAL AREAS - COMPLETE LEARNING SESSION	6
SOURCE CONTROL AND LIMITS	6
EVIDENCE KEY	6
BASIC LEARNING SESSION	6
ROADMAP	6
SESSION 1 - WHY DIFFERENTIATED TRIBAL-AREA GOVERNANCE EXISTS	7
SESSION 2 - ARTICLE 244 MAP AND EXACT VOCABULARY	8
SESSION 3 - FIFTH SCHEDULE REACH AND PRESIDENTIAL DECLARATION	9
SESSION 4 - GOVERNOR REPORT AND UNION DIRECTIONS	11
SESSION 5 - TRIBES ADVISORY COUNCIL COMPOSITION AND FUNCTION	12
SESSION 6 - GOVERNOR'S LAW ADAPTATION AND REGULATION POWERS	14
SESSION 7 - FIFTH SCHEDULE AMENDMENT, ARTICLES 275, 339 AND 342	15
SESSION 8 - SIXTH SCHEDULE SCOPE AND TERRITORIAL ORGANISATION	17
SESSION 9 - COUNCIL COMPOSITION AND BOUNDED EXCEPTIONS	19
SESSION 10 - ARTICLE 244A AND ASSAM'S DEEPER AUTONOMY ROUTE	20
SESSION 11 - COUNCIL LEGISLATIVE POWERS AND ASSENT	22
SESSION 12 - COUNCIL EXECUTIVE AND SERVICE-DELIVERY FUNCTIONS	23
SESSION 13 - VILLAGE COURTS AND JUDICIAL POWERS	24
SESSION 14 - LAND REVENUE, TAXES, MARKETS AND LICENCES	25
SESSION 15 - MINERAL ROYALTY SHARING	26
SESSION 16 - STATE-SPECIFIC APPLICATION OF LAWS	27
SESSION 17 - COMMISSION, SUSPENSION AND DISSOLUTION CONTROLS	28
SESSION 18 - FIFTH VERSUS SIXTH SCHEDULE COMPARISON	29
SESSION 19 - CONSTITUTIONAL ADCS, STATUTORY COUNCILS AND ARTICLE 371 BODIES	30
SESSION 20 - PESA PURPOSE, SCOPE AND VILLAGE	32
SESSION 21 - PESA'S EXACT DECISION VERBS	33
SESSION 22 - PESA LAND, MINERALS AND REPRESENTATION	35
SESSION 23 - FRA CROSS-LINK WITHOUT MERGER	36
SESSION 24 - LAND ALIENATION AND RESTORATION	37

SESSION 25 - SAMATHA AND ITS JURISDICTIONAL BOUNDARY	38
SESSION 26 - NIYAMGIRI AND GRAM SABHA DETERMINATION	39
SESSION 27 - CHEBROLU, WILDLIFE FIRST AND JUDICIAL REVIEW	40
SESSION 28 - INTEGRATED LAND AND RESOURCE DECISION CHAIN	42
SESSION 29 - ACCOUNTABILITY AND IMPLEMENTATION INSTITUTIONS	43
SESSION 30 - EXTENSION DEBATES AND CALIBRATED REFORM	45
SESSION 31 - PRELIMS TRAPS AND MAINS ANSWER SPINE	46
BASIC MCQS / REMEDIATION	48
MCQ 1	48
MCQ 2	48
MCQ 3	48
MCQ 4	49
MCQ 5	49
MCQ 6	49
MCQ 7	49
MCQ 8	50
MCQ 9	50
MCQ 10	50
MCQ 11	51
MCQ 12	51
MCQ 13	51
MCQ 14	51
MCQ 15	52
MCQ 16	52
MCQ 17	52
MCQ 18	53
MCQ 19	53
MCQ 20	53
MCQ 21	53
MCQ 22	54
MCQ 23	54
MCQ 24	54

MCQ 25	55
MCQ 26	55
MCQ 27	55
MCQ 28	55
MCQ 29	56
MCQ 30	56
MCQ 31	56
MCQ 32	57
REMEDICATION GRID	57
PYQS AND ANSWER PRACTICE	57
PYQ 1 - UPSC Prelims 2019, Q50	57
PYQ 2 - UPSC Prelims 2022, Q73	57
PYQ 3 - UPSC Prelims 2023, Q39	58
PYQ 4 - UPSC Prelims 2024, Q84	58
PYQ 5 - UPSC Prelims 2025, Q56	58
PYQ 6 - UPSC Prelims 2026, Q57	58
ORIGINAL MAINS MODELS	59
Original Mains 1 - 10 marks, 150 words	59
Original Mains 2 - 10 marks, 150 words	59
Original Mains 3 - 15 marks, 250 words	59
Original Mains 4 - 15 marks, 250 words	60
Original Mains 5 - 20 marks, 250 words	60
Original Mains 6 - 20 marks, 250 words	61
OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER	61
ADVANCED 1 - ASYMMETRIC FEDERALISM WITHOUT SOVEREIGNTY	61
ADVANCED 2 - GOVERNOR POWER, ADVICE AND REVIEW	61
ADVANCED 3 - SIXTH SCHEDULE INTERNAL ASYMMETRY	61
ADVANCED 4 - ARTICLE 275, ARTICLE 339 AND ADMINISTRATIVE PLANNING	62
ADVANCED 5 - INTERNAL DEMOCRACY AND MINORITY PROTECTION	62
ADVANCED 6 - CURRENT INSTITUTIONAL CONTROL	62
CONSOLIDATED REGISTER NOTES	62
Article 244 and territorial vocabulary	62

Constitutional rationale and history	62
Fifth Schedule State and declaration control	63
Fifth Schedule institutional chain	63
Article 275 and Article 339	63
Sixth Schedule architecture	63
Sixth Schedule powers and limits	64
Fifth-Sixth exact comparison	64
PESA power code	64
FRA linkage	65
Land, mining and case law	65
Article 371 and ordinary Panchayat distinction	65
Accountability and reform recall	65
Last-minute PYQ routes and traps	66
Rapid Mains spines	66
Final rapid recall	67
Amendment and case capsule	67
Final answer spine	67

SCHEDULED AND TRIBAL AREAS - COMPLETE LEARNING SESSION

Subject: Indian Polity | **Topic:** 26 | **Level:** Core answer-complete, then optional advanced depth

SOURCE CONTROL AND LIMITS

- Canonical Markdown was read first and remained read-only: `basic/Scheduled-and-Tribal-Areas.md`, `26_Scheduled-and-Tribal-Areas_Complete-Topic-Package.md` and `advanced/26_Scheduled-and-Tribal-Areas.md`.
- OCR-searchable local books were checked next: *Indian Polity* by M. Laxmikanth, chapter 41 beginning at PDF page 857, and *Courseware on Indian Polity* by M. Laxmikanth, chapter 42 beginning at PDF page 836.
- Constitutional text was controlled through the repository-held official Constitution updated 1 May 2026, especially Articles 244, 244A, 275, 339, 342 and the Fifth and Sixth Schedules.
- Statutory control used the official PESA Act 1996 and FRA 2006 text. Judicial control used the official Supreme Court text or locally verified official judgment records for *Samatha* (1997), *Orissa Mining Corporation* (2013), *Wildlife First* procedural orders (2019) and *Chebrolu Leela Prasad Rao* (2020).
- The Ministry of Tribal Affairs declaration page was directly accessible on 7 September 2026. Direct fetches of the Legislative Department Constitution PDF, India Code PESA PDF and the 4 August 2026 MHA parliamentary-answer PDF returned access restrictions; their propositions were checked against the repository-held official Constitution, canonical official-source extracts and accessible official search records.
- Current district boundaries, TAC rosters, officeholders, grants and programme totals are volatile and are not frozen here. The dated 4 August 2026 MHA parliamentary answer is used only for the bounded statement that it listed ten Sixth Schedule ADCs across the four constitutional States.
- Qdrant was not required.

EVIDENCE KEY

- **[FACT]** constitutional, statutory, judicial or official proposition.
- **[CURRENT]** date-stamped institutional fact.
- **[ANALYSIS]** reasoned exam synthesis.
- **[LIMIT]** qualification preventing overstatement.

BASIC LEARNING SESSION

ROADMAP

Block	Sessions	Outcome
Concept and Article 244 map	1-3	classify the territory, legal source and actor
Fifth Schedule	4-7	master reporting, TAC, regulations, finance and amendment
Sixth Schedule	8-18	explain councils, powers, State-specific rules and controls
PESA and FRA	19-23	use exact statutory verbs without merging the laws
Cases and resource conflicts	24-27	state holdings with jurisdictional limits
Accountability and answer method	28-31	evaluate implementation and write reforms

SESSION 1 - WHY DIFFERENTIATED TRIBAL-AREA GOVERNANCE EXISTS

VISUAL FIRST

DIFFERENT NEED -> DIFFERENTIATED INSTITUTION -> ACCOUNTABLE PROTECTION

Caption: different need -> differentiated institution -> accountable protection.

DEFINITION

Differentiated tribal-area governance is a constitutional response to historical dispossession, territorial concentration, customary institutions and unequal bargaining power.

ANSWER-GRABBING LINE

The Fifth and Sixth Schedules pursue substantive equality through different institutional forms, not exceptions from constitutionalism.

MUST-WRITE KEYWORDS

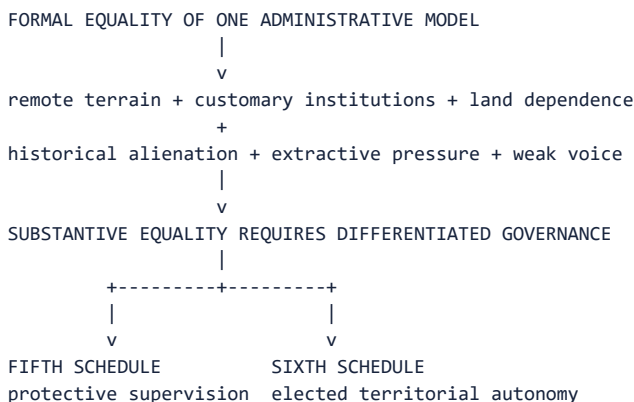
substantive equality; land; culture; agency; accountable autonomy

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Uniform administration can reproduce structural inequality. **Named evidence:** Fifth and Sixth Schedules under Part X. **Analysis:** They match legal institutions to different territorial and historical conditions. **Qualification:** Special status remains bounded by Fundamental Rights, accountability and judicial review.

EVIDENCE AND EXPLANATION

Source visual - The constitutional problem



Caption: The Schedules are devices of substantive equality: they differentiate administration to protect land, culture, voice and self-government.

- [FACT] Part X recognises that ordinary State administration may require constitutional modification in specified tribal regions.
- [ANALYSIS] The central design question is not "special privilege versus equality" but whether identical rules would reproduce unequal bargaining power and historical dispossession.
- [LIMIT] Protection can become paternalism if communities remain subjects of administration rather than participants in decisions.

PRELIMS TRAP

Special administration is not constitutional isolation.

MAINS USE

Use as the normative introduction to any Fifth-versus-Sixth answer.

RECAP

different need -> differentiated institution -> accountable protection

SESSION 2 - ARTICLE 244 MAP AND EXACT VOCABULARY

VISUAL FIRST

244(1) FIFTH | 244(2) SIXTH | 244A ASSAM | 342 TRIBE LIST

Caption: 244(1) Fifth | 244(2) Sixth | 244A Assam | 342 tribe list.

DEFINITION

Article 244 is the gateway applying the Fifth Schedule under clause (1) and the Sixth Schedule under clause (2), while Article 244A creates a separate Assam-only route.

ANSWER-GRABBING LINE

Area status, tribal-area status and Scheduled Tribe status arise through different constitutional mechanisms.

MUST-WRITE KEYWORDS

Article 244(1); Article 244(2); Article 244A; Scheduled Area; tribal area; Article 342

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Correct classification prevents actor and territory errors. **Named evidence:** Articles 244, 244A and 342.

Analysis: The Constitution separates territorial governance from community specification. **Qualification:** A large Scheduled Tribe population does not itself create a Scheduled Area or Sixth Schedule council.

EVIDENCE AND EXPLANATION

Source visual - From exclusion to negotiated constitutionalism

1874 Scheduled Districts Act
|
colonial excluded / partially excluded areas
|
Government of India Act, 1935
|
Constituent Assembly tribal-area subcommittees
- A.V. Thakkar: areas outside Assam
- Gopinath Bordoloi: Assam tribal/excluded areas
|
1950 Constitution
Fifth Schedule: protective administration
Sixth Schedule: autonomous district/regional councils
|
1996 PESA: self-government layer in Fifth Schedule areas
|
2006 FRA: tenure and community forest-resource rights

- [FACT] Colonial "excluded" arrangements largely insulated administration from representative provincial institutions while concentrating power in executive authorities.
- [FACT] The Constitution retained differentiation but added representative, welfare and rights-oriented purposes.
- [ANALYSIS] The Fifth Schedule partially transforms the colonial guardian model; the Sixth Schedule moves further toward territorial self-government.
- [LIMIT] Constitutional continuity in special administration does not mean identical purposes: democratic accountability and tribal agency are now controlling values.

Source visual - The constitutional spine

Provision	Territorial reach	Core function
Article 244(1)	Scheduled Areas and ST administration outside the four Sixth Schedule States	applies Fifth Schedule
Article 244(2)	tribal areas in Assam, Meghalaya, Tripura and Mizoram	applies Sixth Schedule
Article 244A	Assam only	permits Parliament to create an autonomous State with legislature/CoM

Provision	Territorial reach	Core function
Article 275(1)	States requiring specified tribal-welfare/Scheduled-Area support	grants-in-aid
Article 339(1)	Scheduled Areas and ST welfare	presidential commission
Article 339(2)	States	Union directions on essential ST-welfare schemes

- [FACT] Article 244 is the gateway; the detailed institutions are in the Schedules.
- [ANALYSIS] Articles 275 and 339 add fiscal and supervisory support to the territorial design.
- [LIMIT] Article 244A is an enabling power for an autonomous State within Assam, not an automatic consequence of a Sixth Schedule council.

Source visual - Scheduled Area, tribal area and Scheduled Tribe

Term	Legal source	Who specifies/organises?	Exam trap
Scheduled Area	Fifth Schedule, paragraph 6	President by order; specified alterations involve Governor consultation	not the same as any area with ST population
tribal area	Sixth Schedule Parts I-IV	constitutional list, with gubernatorial organisation/reorganisation powers	not a Fifth Schedule label
Scheduled Tribe	Article 342	President specifies for a State/UT; Parliament alters by law	Governor does not declare the ST list
PESA village	PESA section 4(b)	habitation/hamlet-based statutory conception	need not mirror an ordinary revenue village

Memory rule: President schedules the area and tribe list through different constitutional routes; Governor organises Sixth Schedule districts/regions; PESA recognises habitation-based village life.

PRELIMS TRAP

Do not interchange Scheduled Area, tribal area and Scheduled Tribe.

MAINS USE

Use as the constitutional map in the first paragraph.

RECAP

244(1) Fifth | 244(2) Sixth | 244A Assam | 342 tribe list

SESSION 3 - FIFTH SCHEDULE REACH AND PRESIDENTIAL DECLARATION

VISUAL FIRST

CRITERIA -> CONSULTATION ROUTE -> PRESIDENTIAL ORDER -> NOTIFIED AREA

Caption: criteria -> consultation route -> Presidential order -> notified area.

DEFINITION

A Scheduled Area is only territory covered by a Presidential order under paragraph 6 of the Fifth Schedule.

ANSWER-GRABBING LINE

The Fifth Schedule applies in States other than Assam, Meghalaya, Tripura and Mizoram, but only to notified territory within those States.

MUST-WRITE KEYWORDS

paragraph 6; Presidential order; notified territory; Governor consultation; official criteria

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Territorial protection begins with legally precise notification. **Named evidence:** Fifth Schedule paragraph 6 and Ministry of Tribal Affairs criteria. **Analysis:** The order converts administrative criteria into constitutional territorial status. **Qualification:** Criteria such as compactness or tribal preponderance guide identification but do not self-execute.

EVIDENCE AND EXPLANATION

Source visual - Officially supported 10-State inventory

WEST / CENTRAL BELT

Gujarat - Rajasthan - Maharashtra - Madhya Pradesh - Chhattisgarh

EASTERN BELT

Jharkhand - Odisha

SOUTH / DECCAN

Andhra Pradesh - Telangana

HIMALAYAN

Himachal Pradesh

- [CURRENT] The official Ministry of Panchayati Raj state-wise document lists these 10 States.
- [FACT] Their legal coverage comes from operative Presidential Orders, including post-State-reorganisation application.
- [LIMIT] District names and boundaries can change. Memorise the State inventory and declaration mechanism; verify granular district lists from current orders before quoting them.

Source visual - Fifth Schedule paragraph 6 process

territorial facts / State reorganisation / review need

|

v

Governor consultation where the Schedule requires it

|

v

PRESIDENTIAL ORDER

declare | increase | alter boundary | redefine | rescind

|

v

only the notified territory receives Scheduled Area status

- [FACT] The President may declare an area a Scheduled Area.
- [FACT] The Schedule permits increase, alteration, redefinition and rescission through specified presidential orders; consultation with the Governor is required in the cases stated in paragraph 6.
- [LIMIT] Consultation is not the same as gubernatorial consent.

Source visual - Two-layer declaration test

Layer	Content	Legal weight
constitutional authority	President's order under Fifth Schedule paragraph 6	creates/changes legal status
official administrative criteria	tribal preponderance; compactness/reasonable size; viable unit; comparative economic backwardness	guides identification but does not replace notification

- [FACT] The Ministry of Tribal Affairs identifies those four administrative criteria.
- [ANALYSIS] Criteria discipline the area approach by linking protection to demographic, territorial and developmental realities.
- [LIMIT] Satisfying a criterion does not itself make an area Scheduled; notification remains indispensable.

PRELIMS TRAP

Never treat an entire listed State as automatically scheduled.

MAINS USE

Use to answer declaration-authority and current-map questions.

RECAP

criteria -> consultation route -> Presidential order -> notified area

SESSION 4 - GOVERNOR REPORT AND UNION DIRECTIONS

VISUAL FIRST

STATE ADMINISTRATORS -> GOVERNOR REPORTS -> PRESIDENT -> UNION DIRECTIONS

Caption: State administrators -> Governor reports -> President -> Union directions.

DEFINITION

State executive power continues in a Scheduled Area, subject to a constitutional reporting and Union-direction chain.

ANSWER-GRABBING LINE

The Governor reports annually, or whenever required by the President, and Union executive power extends to directions on administration.

MUST-WRITE KEYWORDS

State executive power; annual report; on-demand report; President; Union directions

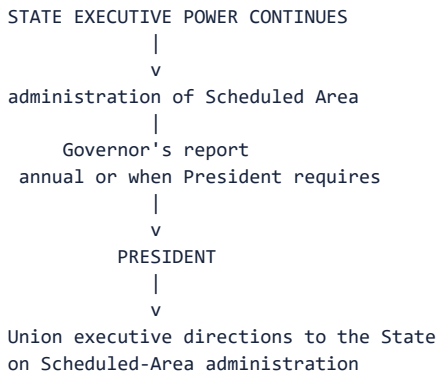
TOPIC-SPECIFIC PARAGRAPH LAB

Claim: The Fifth Schedule supervises State administration rather than replacing it. **Named evidence:** Paragraph 3 of the Fifth Schedule. **Analysis:** Reporting can expose land, service and rights failures to intergovernmental scrutiny.

Qualification: The text does not create automatic Union takeover or a local body with total administration.

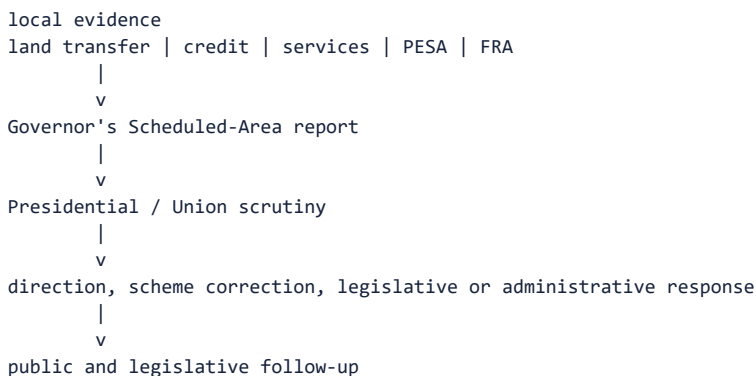
EVIDENCE AND EXPLANATION

Source visual - State administration under Union supervision



- [FACT] The State does not lose executive power merely because an area is scheduled.
- [FACT] The Governor reports annually, or whenever required by the President, on administration of Scheduled Areas.
- [FACT] Union executive power extends to giving directions to the State regarding such administration.
- [LIMIT] The Schedule creates supervision by report and direction, not an automatic Union takeover of total administration.

Source visual - Report-to-remedy loop



- [ANALYSIS] The report can convert local constitutional failures into an intergovernmental accountability record.
- [LIMIT] The text does not itself prescribe a public template, tabling deadline or consequence for a weak report; institutional design must supply those controls.

PRELIMS TRAP

Governor reports to the President, not the Chief Minister to the Home Ministry.

MAINS USE

Use against the common 'State loses executive power' claim.

RECAP

State administers -> Governor reports -> President -> Union directions

SESSION 5 - TRIBES ADVISORY COUNCIL COMPOSITION AND FUNCTION

VISUAL FIRST

GOVERNOR REFERS -> TAC ADVISES -> EXECUTIVE RESPONDS

Caption: Governor refers -> TAC advises -> executive responds.

DEFINITION

A Tribes Advisory Council is a representative advisory institution, not a legislature.

ANSWER-GRABBING LINE

It has not more than twenty members and, as nearly as may be, three-fourths must represent Scheduled Tribes in the State Legislative Assembly, with a shortfall rule.

MUST-WRITE KEYWORDS

TAC; maximum twenty; three-fourths; ST Assembly representatives; welfare and advancement

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: TAC design connects tribal legislative representation to specialised advice. **Named evidence:** Fifth Schedule paragraph 4. **Analysis:** Advice can shape protective administration only when matters are referred and responses are reasoned. **Qualification:** Its advice is not binding law and its agenda depends on gubernatorial reference.

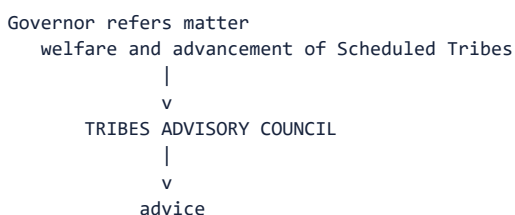
EVIDENCE AND EXPLANATION

Source visual - TAC design

Feature	Fifth Schedule rule
where mandatory	each State having Scheduled Areas
possible extension	President may direct a TAC in a State having STs but no Scheduled Areas
maximum size	20 members
representation	as nearly as may be, three-fourths representatives of STs in State Legislative Assembly
shortfall	remaining seats filled by other members of those tribes

- [FACT] TAC composition seeks a legislative-representative connection rather than a purely bureaucratic advisory body.
- [LIMIT] "Three-fourths ST MLAs" is shorthand. The Schedule says representatives of STs in the Assembly and supplies a shortfall rule.

Source visual - Advisory, not legislative



NOT: statute | binding veto | executive order | court judgment

- [FACT] The TAC advises on matters concerning welfare and advancement of STs that the Governor refers to it.
- [ANALYSIS] Agenda control matters: an advisory body cannot scrutinise what is never referred.
- [LIMIT] Do not describe TAC advice as legally binding or TAC as the Fifth Schedule equivalent of an Autonomous District Council.

PRELIMS TRAP

Do not copy the Sixth Schedule's thirty-member council rule into TAC.

MAINS USE

Use to evaluate institutional under-activation.

RECAP

Governor refers -> TAC advises -> executive responds

SESSION 6 - GOVERNOR'S LAW ADAPTATION AND REGULATION POWERS

VISUAL FIRST

ADAPT LAW OR REGULATE -> CONSULT TAC -> PRESIDENTIAL ASSENT

Caption: adapt law OR regulate -> consult TAC -> Presidential assent.

DEFINITION

Paragraph 5 gives the Governor two distinct tools: adapting the application of legislation and making peace-and-good-government regulations.

ANSWER-GRABBING LINE

The Governor may exclude or modify parliamentary or State Acts for a Scheduled Area and regulate tribal land transfer, allotment and money-lending, subject to constitutional safeguards.

MUST-WRITE KEYWORDS

public notification; exceptions; modifications; retrospective effect; land transfer; money-lending; Presidential assent

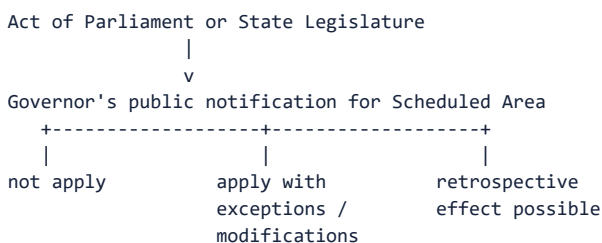
TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Protective power is strongest when general law would otherwise facilitate alienation. **Named evidence:** Fifth Schedule paragraph 5. **Analysis:** The first tool filters existing law; the second creates tailored regulation.

Qualification: Regulations require TAC consultation where one exists and have no effect until Presidential assent.

EVIDENCE AND EXPLANATION

Source visual - Paragraph 5(1) shield



- [FACT] The Governor may direct that a parliamentary or State Act shall not apply to a Scheduled Area or shall apply subject to exceptions and modifications.
- [FACT] The direction may have retrospective effect.
- [ANALYSIS] This is a constitutional adaptation power: general law can be filtered through local land, custom and institutional realities.
- [LIMIT] It is not a general power to suspend the Constitution or Fundamental Rights.

Source visual - Paragraph 5(2) protective subjects

Regulation field	Protective purpose
peace and good government of a Scheduled Area	tailored administration
prohibit/restrict transfer of land by or among ST members	prevent alienation
regulate allotment of land to ST members	secure access
regulate money-lending to ST members	reduce exploitative credit

Source visual - Regulation validity chain

draft regulation
 |
 consult TAC where one exists
 |
 Governor makes regulation
 |
 may amend/repeal applicable parliamentary or State law
 |
 submitted to President
 |
 NO EFFECT UNTIL PRESIDENTIAL ASSENT

- [FACT] Presidential assent is a condition of effect.
- [FACT] Consultation with the TAC is required before making such regulations where a TAC exists.
- [LIMIT] PESA later adds broader statutory self-government functions; it does not erase the constitutional regulation route.

Source visual - Text, convention and review

Proposition	Safe treatment
Schedule says "Governor may"	[FACT] identifies the constitutional office holding the power
Governor acts personally in every case	[LIMIT] do not assert without a specific constitutional/judicial basis
advice can never matter	[LIMIT] overstatement
action/inaction is beyond review	[LIMIT] constitutional power remains bounded by purpose, law and judicial review

- [ANALYSIS] The exam-worthy criticism is not that the Governor owns sovereign tribal policy; it is that a protective constitutional power may remain under-used within an executive system dominated by ordinary State priorities.

PRELIMS TRAP

Fifth regulation -> President assent; Sixth council law -> Governor assent.

MAINS USE

Use as the institutional core of a Fifth Schedule answer.

RECAP

adapt law OR regulate -> consult TAC -> Presidential assent

SESSION 7 - FIFTH SCHEDULE AMENDMENT, ARTICLES 275, 339 AND 342

VISUAL FIRST

ORDINARY-LAW AMENDMENT + GRANTS + COMMISSION/DIRECTIONS + SEPARATE ST LIST

Caption: ordinary-law amendment + grants + commission/directions + separate ST list.

DEFINITION

Territorial protection is supported by fiscal grants, Union supervision and a separate constitutional route for specifying Scheduled Tribes.

ANSWER-GRABBING LINE

Paragraph 7 lets Parliament amend the Fifth Schedule by ordinary law and expressly excludes such law from Article 368 treatment.

MUST-WRITE KEYWORDS

paragraph 7; ordinary law; Article 275(1); Article 339; Article 342

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: The architecture combines adaptable text, finance, supervision and identity specification. **Named evidence:** Fifth Schedule paragraph 7 and Articles 275, 339 and 342. **Analysis:** These provisions support the Schedule without collapsing into one institution. **Qualification:** Article 342 concerns the ST list, not declaration of Scheduled Areas; wider reservation doctrine belongs elsewhere.

EVIDENCE AND EXPLANATION

Source visual - Article 339's two clauses

Clause	Power	Precision
339(1)	President may appoint a commission at any time and was required to do so after ten years from commencement	examine Scheduled-Area administration and ST welfare
339(2)	Union may direct a State on drawing up/executing schemes specified as essential for ST welfare	scheme-specific welfare direction

- [FACT] The first Scheduled Areas and Scheduled Tribes Commission was chaired by U.N. Dhebar; a later commission was chaired by Dilip Singh Bhuria.
- [LIMIT] Article 339(2) welfare-scheme directions and Fifth Schedule paragraph 3 directions on Scheduled-Area administration are related but textually distinct.

Source visual - Constitutional finance chain

```
Parliament provides grants-in-aid
|
+--> ST welfare schemes approved by Government of India
|
+--> raising Scheduled-Area administration
      to the level of the rest of the State
|
v
State implementation + constitutional accountability
```

- [FACT] Article 275(1) creates a dedicated constitutional grant route for specified tribal-welfare and Scheduled-Area administration needs.
- [ANALYSIS] Fiscal equalisation is essential because formal autonomy without administrative capacity can reproduce dependence.
- [LIMIT] A grant is not proof of devolution, rights recognition or outcomes.

Source visual - Who does what?

Actor	Core role	Accountability risk
President/Union	declare areas; assent regulations; receive reports; give directions	distant supervision

Actor	Core role	Accountability risk
Governor	report; refer to TAC; adapt laws; make regulations	opacity or dormancy
State government	day-to-day administration and implementation	conflict with extraction/revenue priorities
TAC	advice on referred welfare/advancement matters	weak agenda and non-binding advice
Gram Sabha under PESA/FRA	specified participatory, resource and rights functions	capacity, record and enforcement gaps

Source visual - Fifth Schedule performance equation

constitutional power

- x timely use
- x community participation
- x enforceable records
- x fiscal/administrative capacity
- = effective protection

- [ANALYSIS] A strong text can deliver weak protection if any multiplier approaches zero.

FIFTH SCHEDULE PARAGRAPH 7

- [FACT] Parliament may, by ordinary law, add to, vary or repeal provisions of the Fifth Schedule.
- [FACT] Paragraph 7(2) expressly says such a law is not deemed an amendment of the Constitution for Article 368.
- [LIMIT] The special amendment route does not free Parliament from Fundamental Rights, federal structure or judicial review.

PRELIMS TRAP

Do not call every change to the Fifth Schedule a constitutional amendment under Article 368.

MAINS USE

Use to add fiscal and supervisory depth without losing the territorial focus.

RECAP

ordinary-law amendment + grants + commission/directions + separate ST list

SESSION 8 - SIXTH SCHEDULE SCOPE AND TERRITORIAL ORGANISATION

VISUAL FIRST

FOUR STATES -> DISTRICT -> DISTINCT TRIBES -> REGION

Caption: four States -> district -> distinct tribes -> region.

DEFINITION

The Sixth Schedule constitutionally organises specified tribal areas in Assam, Meghalaya, Tripura and Mizoram as autonomous districts and, where needed, regions.

ANSWER-GRABBING LINE

The Governor may create, alter, unite, rename and redefine autonomous districts or regions through the Schedule's procedures.

MUST-WRITE KEYWORDS

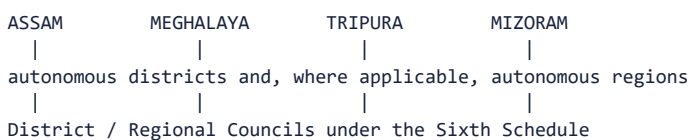
Assam; Meghalaya; Tripura; Mizoram; autonomous district; autonomous region; Governor

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Territorial organisation allows autonomy to follow distinct tribal concentrations. **Named evidence:** Sixth Schedule paragraphs 1 and 20. **Analysis:** District and regional design can protect internal diversity within a larger autonomous district. **Qualification:** An autonomous district remains within the State and is not a sovereign enclave.

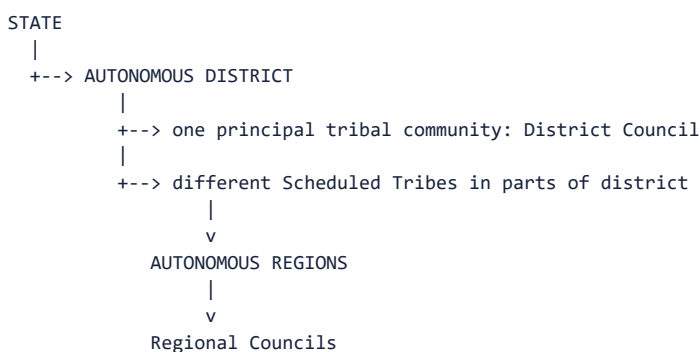
EVIDENCE AND EXPLANATION

Source visual - Four-State constitutional field



- [FACT] The Sixth Schedule operates only in Assam, Meghalaya, Tripura and Mizoram.
- [LIMIT] Nagaland, Manipur and Arunachal Pradesh have other constitutional/statutory arrangements; do not add them to the Sixth Schedule list.

Source visual - Territorial nesting



- [FACT] Tribal areas in each Schedule part are administered as autonomous districts.
- [FACT] Where different STs inhabit an autonomous district, the Governor may divide it into autonomous regions.
- [LIMIT] An autonomous district remains within the State and subject to the Constitution; it is not a sovereign enclave.

Source visual - Reorganisation tools

Governor may by public notification	Constitutional effect
include/exclude an area	changes territorial reach
create a new autonomous district	adds a district unit
increase/decrease area	changes boundary

Governor may by public notification	Constitutional effect
unite parts	consolidates units
define boundaries	settles territorial line
alter name	changes designation

- [FACT] The Schedule gives the Governor substantial territorial-organisation power, subject to its procedures.
- [LIMIT] Reorganisation is not equivalent to State creation under Articles 2-3.

PRELIMS TRAP

Do not include every North-Eastern State in the Sixth Schedule.

MAINS USE

Use to establish scope before discussing council powers.

RECAP

four States -> district -> distinct tribes -> region

SESSION 9 - COUNCIL COMPOSITION AND BOUNDED EXCEPTIONS

VISUAL FIRST

ORDINARY CEILING -> ELECTED MAJORITY -> NAMED CONSTITUTIONAL EXCEPTIONS

Caption: ordinary ceiling -> elected majority -> named constitutional exceptions.

DEFINITION

The ordinary District Council has not more than thirty members, with not more than four nominated by the Governor and the rest elected by adult suffrage.

ANSWER-GRABBING LINE

Composition is a default rule modified by State- and council-specific constitutional amendments.

MUST-WRITE KEYWORDS

up to thirty; up to four nominated; adult suffrage; five-year term; Bodoland exception

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Representation rules reveal that Sixth Schedule autonomy is internally asymmetric. **Named evidence:** Paragraph 2 and the 2003 Bodoland amendment. **Analysis:** The Bodoland Territorial Council has up to forty-six members: forty elected and six nominated, with specified representation. **Qualification:** Do not generalise Bodoland's forty-six-member design to Karbi Anglong, Dima Hasao or other councils.

EVIDENCE AND EXPLANATION

Source visual - Ordinary paragraph 2 model

```
DISTRICT COUNCIL: not more than 30 members
|
+--> not more than 4 nominated by Governor
|
+--> remainder elected on adult suffrage
```

elected term: ordinarily 5 years
nominated tenure: pleasure of Governor

- [FACT] The ordinary model is "up to 30", not an invariable 30.
- [FACT] Special constitutional amendments create exceptions.

Source visual - Bodoland exception

Ordinary council	Bodoland Territorial Council special design
up to 30	46 members
up to 4 nominated	40 elected + 6 Governor-nominated
general paragraph 2 model	special Assam amendment architecture

- [CURRENT] Assam's official portal identifies BTC, Karbi Anglong and Dima Hasao/North Cachar Hills councils as its Sixth Schedule autonomous-council institutions.
- [LIMIT] Do not generalise BTC's composition or subject list to all councils.

Source visual - State-wise council examples

State	Officially supported examples	Safe recall
Assam	Bodoland Territorial Council; Karbi Anglong Autonomous Council; Dima Hasao/North Cachar Hills Autonomous Council	special Assam amendments matter
Meghalaya	Khasi Hills, Jaintia Hills and Garo Hills ADCs	State department scrutinises council instruments before Governor route
Tripura	Tripura Tribal Areas Autonomous District Council	brought under Sixth Schedule from 1985
Mizoram	Chakma, Lai and Mara ADCs	distinct councils plus Article 371G State-level protection

- [LIMIT] Council names, rules and officeholders are institution-specific. The constitutional power map is common only to the extent the Schedule says so.

BODOLAND COMPOSITION - BOUNDED EXCEPTION

- [FACT] The 2003 amendment permits up to forty-six members: forty elected and six nominated by the Governor.
- [FACT] Of the forty elected seats, thirty are reserved for Scheduled Tribes, five for non-tribal communities and five are open to all communities.
- [FACT] The six nominees come from unrepresented communities, have the same rights including voting rights, and at least two must be women.
- [LIMIT] This design belongs to the Bodoland Territorial Council and is not the default rule for every ADC.

PRELIMS TRAP

The ordinary model is a ceiling, not thirty compulsory members.

MAINS USE

Use for composition questions and State-specific qualification.

RECAP

ordinary ceiling -> elected majority -> named constitutional exceptions

SESSION 10 - ARTICLE 244A AND ASSAM'S DEEPER AUTONOMY ROUTE

VISUAL FIRST

ADC POWERS -> ASSAM-SPECIFIC ADDITIONS -> SEPARATE 244A ROUTE

Caption: ADC powers -> Assam-specific additions -> separate 244A route.

DEFINITION

Article 244A enables Parliament to form within Assam an autonomous State comprising specified tribal areas, with a legislature, Council of Ministers or both.

ANSWER-GRABBING LINE

Article 244A is a separate parliamentary route deeper than ordinary district-council autonomy.

MUST-WRITE KEYWORDS

Article 244A; Assam; autonomous State; legislature; Council of Ministers; parliamentary law

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: The provision shows that the Constitution offers more than one scale of autonomy within Assam. **Named evidence:** Article 244A and Sixth Schedule paragraphs 3A and 3B. **Analysis:** Assam-specific additions enlarge subjects for Karbi Anglong, Dima Hasao and Bodoland without converting them into States. **Qualification:** Article 244A is enabling and has not automatically transformed any existing council.

EVIDENCE AND EXPLANATION

Source visual - Assam's layered autonomy

SIXTH SCHEDULE ORDINARY POWERS

```
|
+--> paragraph 3A: additional subjects for
|   North Cachar Hills and Karbi Anglong councils
|
+--> paragraph 3B: enlarged subject allocation
|   for Bodoland Territorial Council
|
+--> Article 244A: Parliament may create
|   an autonomous State within Assam
|   with legislature and Council of Ministers
```

- [FACT] Paragraphs 3A and 3B are constitutionally embedded Assam-specific enlargements.
- [ANALYSIS] The Sixth Schedule is therefore asymmetric even within the four-State field.
- [LIMIT] Article 244A's autonomous-State possibility is distinct from the current legal status of an ADC and does not convert BTC, KAAC or the Dima Hasao council into a State.

ARTICLE 244A - EXACT ROUTE

The Constitution (Twenty-second Amendment) Act, 1969 inserted Article 244A. Parliament may by law form within Assam an autonomous State comprising all or any of the tribal areas in Part I of the Sixth Schedule and create for it a legislature, a Council of Ministers, or both. The law may allocate legislative and executive functions and provide financial relations. The route is enabling, Assam-specific and distinct from merely reorganising an autonomous district.

PRELIMS TRAP

BTC is neither a Fifth Schedule TAC nor an autonomous State under Article 244A.

MAINS USE

Use to distinguish council, autonomous State and full Statehood.

RECAP

ADC powers -> Assam-specific additions -> separate 244A route

SESSION 11 - COUNCIL LEGISLATIVE POWERS AND ASSENT

VISUAL FIRST

SPECIFIED FIELD -> COUNCIL LAW -> GOVERNOR ASSENT

Caption: specified field -> council law -> Governor assent.

DEFINITION

District and Regional Councils legislate only over the fields specified by the Sixth Schedule and applicable amendments.

ANSWER-GRABBING LINE

Core fields include land, non-reserved forests, agricultural water, shifting cultivation, village administration, chiefs, inheritance, marriage, divorce and social customs.

MUST-WRITE KEYWORDS

paragraph 3; non-reserved forest; shifting cultivation; customs; Governor assent

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Council law-making constitutionalises customary and territorial self-government. **Named evidence:** Sixth Schedule paragraph 3. **Analysis:** A law has no effect until assented to by the Governor. **Qualification:** Reserved forests and plenary State-List competence remain outside the ordinary paragraph 3 grant.

EVIDENCE AND EXPLANATION

Source visual - Paragraph 3 subject map

Council law field	Core scope
land	allotment, occupation or use, other than reserved forest
forests	management of forests other than reserved forests
water	canals/watercourses for agriculture
cultivation	regulation of shifting cultivation
local institutions	village/town committees and administration
leadership	appointment/succession of chiefs or headmen
family/property custom	inheritance
personal/customary law	marriage, divorce and social customs

Source visual - Council-law validity chain

District / Regional Council passes law

↓

submitted to Governor

↓

NO EFFECT UNTIL GOVERNOR'S ASSENT

- [FACT] These powers are legislative in character and materially stronger than TAC advice.
- [LIMIT] The subject list is specified and bounded; a council does not possess the plenary competence of a State legislature.

Source visual - What paragraph 3 does not give

Tempting claim	Correct position
council controls every forest	paragraph 3 excludes reserved forests

Tempting claim	Correct position
council owns all minerals	Schedule provides specified regulation/revenue arrangements, not blanket subsoil ownership
council may legislate on any State List subject	competence is schedule- and amendment-specific
Governor assent equals President assent	ordinary council laws use Governor assent; Fifth Schedule regulations use President assent

- [ANALYSIS] UPSC often converts one omitted adjective - "reserved" or "specified" - into the decisive close-option trap.

PRELIMS TRAP

One omitted word - 'reserved' - can reverse the answer.

MAINS USE

Use to show autonomy and its subject-matter ceiling.

RECAP

specified field -> council law -> Governor assent

SESSION 12 - COUNCIL EXECUTIVE AND SERVICE-DELIVERY FUNCTIONS

VISUAL FIRST

CONSTITUTIONAL FUNCTION -> STAFF/FUND TRANSFER -> ACCOUNTABLE SERVICE

Caption: constitutional function -> staff/fund transfer -> accountable service.

DEFINITION

The Sixth Schedule permits councils to establish or manage specified local institutions and receive additional entrusted functions.

ANSWER-GRABBING LINE

Schools, dispensaries, markets, ferries, fisheries, roads and related local services form the constitutional service basket.

MUST-WRITE KEYWORDS

paragraph 6; primary schools; dispensaries; markets; ferries; fisheries; roads

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Autonomy becomes real only when functions are matched by staff and funds. **Named evidence:** Sixth Schedule paragraph 6. **Analysis:** Local service authority can adapt administration to terrain, language and custom. **Qualification:** Formal subject allocation does not prove operational transfer or adequate capacity.

EVIDENCE AND EXPLANATION

Source visual - Local administration basket

District Council
 |
 +--> primary schools
 +--> dispensaries
 +--> markets and cattle pounds
 +--> ferries and fisheries
 +--> roads and specified transport/waterways
 +--> other entrusted State functions

- [FACT] Paragraph 6 authorises councils to establish, construct or manage specified local institutions and services.
- [FACT] The Governor may entrust additional functions relating to subjects such as agriculture, animal husbandry, community projects, cooperatives, social welfare and village planning.

- [LIMIT] Actual functional transfer depends on the applicable constitutional amendment, State-council arrangements, rules, staff and finance.

PRELIMS TRAP

Do not call every State department function an inherent council function.

MAINS USE

Use in governance answers on the three Fs: functions, functionaries and funds.

RECAP

constitutional function -> staff/fund transfer -> accountable service

SESSION 13 - VILLAGE COURTS AND JUDICIAL POWERS

VISUAL FIRST

LOCAL DISPUTE -> VILLAGE/COUNCIL COURT -> APPEAL/REVIEW UNDER LAW

Caption: local dispute -> village/council court -> appeal/review under law.

DEFINITION

The Sixth Schedule authorises village councils or courts and appellate arrangements for specified disputes in the autonomous area.

ANSWER-GRABBING LINE

The jurisdiction is bounded by the Schedule, applicable rules, parties, territory and offence or dispute type.

MUST-WRITE KEYWORDS

paragraph 4; village councils; council courts; tribal parties; appeals; High Court

TOPIC-SPECIFIC PARAGRAPH LAB

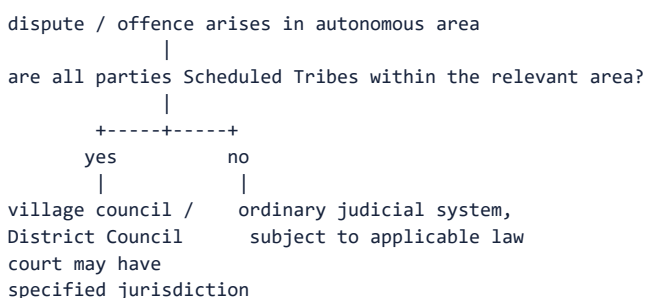
Claim: Customary adjudication can improve access while remaining nested in constitutional justice. **Named**

evidence: Sixth Schedule paragraph 4. **Analysis:** Local forums reduce distance and recognise customary norms.

Qualification: They do not replace High Courts or possess unlimited civil and criminal jurisdiction.

EVIDENCE AND EXPLANATION

Source visual - Customary justice boundary



- [FACT] Paragraph 4 enables village councils or courts and appellate arrangements for specified cases within the tribal-party boundary.
- [FACT] The Governor frames/approves important jurisdictional and procedural rules under the Schedule.
- [LIMIT] These bodies are not unrestricted substitutes for constitutional High Courts or the entire criminal-justice system.

PRELIMS TRAP

ADC court is not a parallel sovereign judiciary.

MAINS USE

Use to show that Sixth Schedule power is legislative, executive, judicial and fiscal.

RECAP

local dispute -> village/council court -> appeal/review under law

SESSION 14 - LAND REVENUE, TAXES, MARKETS AND LICENCES

VISUAL FIRST

ENUMERATED LEVY/REGULATION -> COUNCIL FUND -> AUDIT/ACCOUNTABILITY

Caption: enumerated levy/regulation -> council fund -> audit/accountability.

DEFINITION

District and Regional Councils possess enumerated fiscal and regulatory powers rather than general taxing sovereignty.

ANSWER-GRABBING LINE

They may assess land revenue, levy specified taxes and regulate markets, money-lending and trading by non-tribals under the relevant paragraphs.

MUST-WRITE KEYWORDS

land revenue; District Fund; Regional Fund; markets; professions; vehicles; licensing; three-fourths

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Own-source revenue supports autonomy when levies remain lawful and auditable. **Named evidence:** Sixth Schedule paragraphs 7, 8 and 10. **Analysis:** Paragraph 10 licensing regulations require a three-fourths majority and Governor assent, subject to its protection for established traders. **Qualification:** Enumerated taxes do not include every modern tax or confer immunity from audit.

EVIDENCE AND EXPLANATION

Source visual - Revenue basket

Power	Examples under the Schedule
land revenue	assessment and collection
taxes	lands/buildings; professions/trades/callings/employment; animals, vehicles and boats
local levies	entry of goods into markets; tolls; taxes for maintenance of schools, dispensaries or roads
markets and services	fees and local-service revenue under valid law
funds	District and Regional Funds with prescribed accounting/audit

- [FACT] Councils have constitutionally recognised revenue powers that a Fifth Schedule TAC does not possess.
- [LIMIT] The exact levy must fit the Schedule and valid council law; "fiscal autonomy" does not mean immunity from audit, State law or constitutional limits.

PRELIMS TRAP

Do not turn market regulation into a blanket power over all commerce.

MAINS USE

Use to explain why an ADC is stronger than a TAC.

RECAP

enumerated levy/regulation -> council fund -> audit/accountability

SESSION 15 - MINERAL ROYALTY SHARING

VISUAL FIRST

STATE LEASE -> ROYALTY -> AGREED COUNCIL SHARE -> GOVERNOR DECIDES DISPUTE

Caption: State lease -> royalty -> agreed council share -> Governor decides dispute.

DEFINITION

Paragraph 9 creates a revenue-sharing mechanism for mineral licences or leases in an autonomous district.

ANSWER-GRABBING LINE

The State and District Council agree the share of annual royalties; a dispute goes to the Governor for determination.

MUST-WRITE KEYWORDS

paragraph 9; licence; lease; royalty share; State Government; District Council; Governor

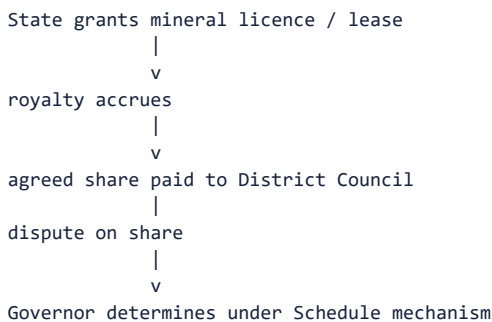
TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Royalty sharing recognises territorial fiscal interest without transferring mineral sovereignty. **Named evidence:** Sixth Schedule paragraph 9. **Analysis:** The mechanism can internalise some local fiscal costs of extraction.

Qualification: A royalty share is neither ownership, project consent nor a substitute for PESA/FRA/environmental compliance.

EVIDENCE AND EXPLANATION

Source visual - Paragraph 9 flow



- [FACT] The Schedule contemplates a share of mineral royalties for the District Council.
- [ANALYSIS] Revenue sharing can internalise some local costs but cannot substitute for rights compliance, environmental appraisal or rehabilitation.
- [LIMIT] A royalty share is not ownership of all minerals and is not community consent.

PRELIMS TRAP

Money received is not proof that mining is otherwise lawful.

MAINS USE

Use in resource-federalism and autonomy answers.

RECAP

State lease -> royalty -> agreed council share -> Governor decides dispute

SESSION 16 - STATE-SPECIFIC APPLICATION OF LAWS

VISUAL FIRST

IDENTIFY STATE -> IDENTIFY PARAGRAPH -> IDENTIFY ACTOR -> APPLY EXACT FILTER

Caption: identify State -> identify paragraph -> identify actor -> apply exact filter.

DEFINITION

The Sixth Schedule uses different legal filters for Assam, Meghalaya, Tripura and Mizoram; there is no single rule for all four.

ANSWER-GRABBING LINE

Paragraphs 12, 12A, 12AA and 12B allocate non-application, modification and repugnancy powers differently.

MUST-WRITE KEYWORDS

paragraph 12; 12A; 12AA; 12B; State Acts; parliamentary Acts; retrospective modification

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: State-specific filters prevent ordinary law from silently displacing autonomous competence. **Named evidence:** Sixth Schedule paragraphs 12 to 12B. **Analysis:** Assam, Tripura and Mizoram give councils a gate over specified State laws; Meghalaya instead gives State law primacy on repugnancy, while Presidential filtering applies to parliamentary Acts. **Qualification:** Never write that all Central and State laws require council consent.

EVIDENCE AND EXPLANATION

Source visual - State-specific legal filters

State field	Schedule technique
Assam	special rules on application of State/parliamentary laws to autonomous districts and regions
Meghalaya	distinct paragraph 12A route
Tripura	distinct paragraph 12AA route
Mizoram	distinct paragraph 12B route

- [FACT] The Sixth Schedule contains separate State-specific provisions on whether and how laws apply.
- [LIMIT] Avoid the oversimplified sentence "Central and State laws do not apply unless the council agrees." The correct answer must identify that applicability, modification and notification rules vary by State and subject.

STATE-SPECIFIC LAW FILTERS - DO NOT FLATTEN

State	Controlling paragraph	Distinct rule
Assam	12	specified State laws in paragraph 3/3A/3B fields and non-distilled liquor apply only if the Council directs; Governor may exclude or modify other State or parliamentary Acts
Meghalaya	12A	State law prevails over repugnant Council law/regulation in the named fields; President may exclude or modify parliamentary Acts
Tripura	12AA	council gate for specified State laws; Governor filters other State Acts; President filters parliamentary Acts
Mizoram	12B	broadly parallels Tripura through its own paragraph; never cite 12AA for Mizoram

[LIMIT] Retrospective operation is available where the relevant paragraph says so. Always name the State, paragraph, actor and class of law.

PRELIMS TRAP

The State-specific paragraph, actor and subject decide the answer.

MAINS USE

Use as the strongest anti-flattening paragraph in a Mains answer.

RECAP

identify State -> identify paragraph -> identify actor -> apply exact filter

SESSION 17 - COMMISSION, SUSPENSION AND DISSOLUTION CONTROLS

VISUAL FIRST

INQUIRY -> REASONS -> SUSPENSION/DISSOLUTION ROUTE -> LEGISLATIVE SCRUTINY

Caption: inquiry -> reasons -> suspension/dissolution route -> legislative scrutiny.

DEFINITION

Council autonomy is checked through reasoned constitutional mechanisms rather than an unstructured gubernatorial override.

ANSWER-GRABBING LINE

Paragraph 14 permits a commission; paragraph 15 permits annulment or suspension for safety of India or public order; paragraph 16 provides a commission-linked dissolution route.

MUST-WRITE KEYWORDS

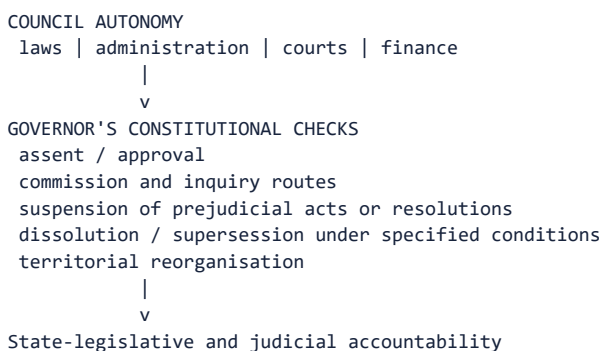
paragraph 14 commission; paragraph 15 suspension; paragraph 16 dissolution; State Legislature; reasons

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Review mechanisms can correct failure but can also weaken autonomy if used politically. **Named evidence:** Sixth Schedule paragraphs 14-16. **Analysis:** Commission reports, legislative laying and bounded interim administration create institutional checks. **Qualification:** Tripura, Mizoram and Assam amendments alter parts of the ordinary model; the exact applicable text must be checked.

EVIDENCE AND EXPLANATION

Source visual - Autonomy with constitutional brakes



- [FACT] The Schedule authorises gubernatorial intervention through specified procedures when council action threatens safety/public order or when administration requires inquiry and reconstitution.
- [LIMIT] These are conditioned constitutional controls, not a free-standing power to erase autonomy for political convenience.

Source visual - Do not import the Fifth Schedule assent rule

Function	Primary constitutional actor
ordinary council law assent	Governor
council rules/regulations where Schedule requires	Governor approval/assent
Article 275(1) grants	Union/Parliamentary constitutional finance

Function	Primary constitutional actor
amendment of Sixth Schedule	Parliament under paragraph 21, treated as not an Article 368 amendment for that purpose
routine approval of every ADC decision	not the President

- [FACT] The President is not the routine assent authority for Sixth Schedule council laws.
- [LIMIT] Union legislation, constitutional finance and parliamentary amendment remain important; autonomy is nested within the Union-State Constitution.

CONTROL MECHANISMS - EXACT SEQUENCE

- [FACT] Paragraph 14 permits a Governor-appointed commission on administration, services, legislation and council-made law; its report enters the State-legislative accountability route.
- [FACT] Paragraph 15 permits annulment or suspension of a council act or resolution likely to endanger India's safety or prejudice public order; reasons and legislative laying are required.
- [FACT] Paragraph 16 ordinarily links dissolution to a paragraph 14 commission recommendation, followed by fresh election or bounded interim administration. Paragraph 16(2) also provides a temporary supersession/assumption route when administration cannot be carried on under the Schedule, subject to reasons, time limits and State-legislative control.
- [LIMIT] Assam, Tripura and Mizoram amendments change parts of these mechanisms. State-specific text controls.
- [FACT] Paragraph 21 permits Parliament to amend the Sixth Schedule by ordinary law and says such a law is not deemed an Article 368 amendment.

PRELIMS TRAP

Do not describe dissolution as an unrestricted pleasure power.

MAINS USE

Use to balance autonomy with constitutional accountability.

RECAP

inquiry -> reasons -> suspension/dissolution route -> legislative scrutiny

SESSION 18 - FIFTH VERSUS SIXTH SCHEDULE COMPARISON

VISUAL FIRST

TERRITORY -> BODY -> POWERS -> ASSENT -> ACCOUNTABILITY -> STATUTORY LAYER

Caption: territory -> body -> powers -> assent -> accountability -> statutory layer.

DEFINITION

The Fifth Schedule is a protective-supervision model; the Sixth Schedule is a bounded territorial self-government model.

ANSWER-GRABBING LINE

Their actors, territorial routes, law-making powers, assent authorities, courts, taxes and PESA relationship differ.

MUST-WRITE KEYWORDS

President declaration; TAC; ADC; Governor assent; President assent; PESA reach

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Comparison must proceed on identical institutional axes. **Named evidence:** Articles 244(1)-(2), Fifth and Sixth Schedules. **Analysis:** The Sixth generally institutionalises more continuous local agency, while the Fifth supplies stronger guardian-style adaptation powers. **Qualification:** Neither model automatically guarantees participation, capacity or rights compliance.

EVIDENCE AND EXPLANATION

Source visual - Master comparison matrix

Dimension	Fifth Schedule	Sixth Schedule
Article	244(1)	244(2)
territory	notified Scheduled Areas in 10 States	tribal areas in Assam, Meghalaya, Tripura, Mizoram
territorial status-maker	President declares Scheduled Area	Constitution lists areas; Governor organises/reorganises districts/regions
core theory	protective supervision	territorial self-government
main representative body	TAC, advisory	elected District/Regional Council
law-making	Governor adapts laws/makes regulations	councils legislate on specified subjects
assent	President for Governor's regulations	Governor for council laws
executive power	State continues; Union directions	State authority continues; councils manage specified functions
courts	ordinary system; special laws may operate	village/council courts for specified tribal-party cases
taxation	no TAC taxation power	councils assess land revenue and specified taxes
local-government statute	PESA applies	PESA does not apply
autonomy ceiling	no elected territorial legislature in Schedule itself	substantial but subject-specific and supervised

Source visual - One-line memory contrast

FIFTH = AREA + GOVERNOR/PRESIDENT + TAC + PESA
SIXTH = DISTRICT/REGION + ELECTED COUNCIL + LAWS/COURTS/TAXES

PRELIMS TRAP

TAC and ADC are not equivalent bodies.

MAINS USE

Use as a ready 15-mark structure.

RECAP

territory -> body -> powers -> assent -> accountability -> statutory layer

SESSION 19 - CONSTITUTIONAL ADCS, STATUTORY COUNCILS AND ARTICLE 371 BODIES

VISUAL FIRST

NAME -> SOURCE -> TERRITORY -> POWERS -> LIMITS

Caption: name -> source -> territory -> powers -> limits.

DEFINITION

Institutional labels such as hill council, autonomous council or committee do not establish a Sixth Schedule status.

ANSWER-GRABBING LINE

A constitutional ADC derives authority from the Sixth Schedule; statutory councils derive from legislation; Article 371 committees derive from distinct Part XXI clauses.

MUST-WRITE KEYWORDS

constitutional ADC; statutory council; Article 371B; Article 371C; hill council; legal source

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Power follows source, not institutional name. **Named evidence:** Sixth Schedule, Article 371B, Article 371C and enabling statutes. **Analysis:** The distinction determines legislative competence, finance, judicial power and amendment route. **Qualification:** Nagaland, Manipur and Arunachal arrangements cannot be counted as Sixth Schedule councils merely because they protect tribal interests.

EVIDENCE AND EXPLANATION

Source visual - Constitutional differentiation grid

System	Source	Territorial unit	Core institution
ordinary Panchayats	Part IX	rural local area	Gram Sabha + three-tier PRIs
PESA	1996 Act applying modified Part IX	Fifth Schedule Scheduled Areas	habitation-based Gram Sabha + PRIs
Sixth Schedule	Constitution	autonomous district/region in four States	District/Regional Council
Article 371 family	Part XXI State-specific provisions	named State	Governor responsibility, committees, customary/resource protections or regional boards depending Article

- [FACT] Article 243M excludes Scheduled Areas and tribal areas from automatic Part IX application.
- [FACT] PESA extends Part IX only to Fifth Schedule areas, with exceptions and modifications.
- [LIMIT] Article 371A/371G customary-law and land/resource protections do not make Nagaland or all Mizoram a Sixth Schedule council system.

PRELIMS TRAP

Decode the legal source before comparing powers.

MAINS USE

Use to avoid conflating ADCs with Ladakh hill councils or Hill Areas Committees.

RECAP

name -> source -> territory -> powers -> limits

SESSION 20 - PESA PURPOSE, SCOPE AND VILLAGE

VISUAL FIRST

ARTICLE 243M EXCLUSION -> PESA EXTENSION -> HABITATION VILLAGE -> GRAM SABHA

Caption: Article 243M exclusion -> PESA extension -> habitation village -> Gram Sabha.

DEFINITION

PESA 1996 extends a modified Part IX only to Fifth Schedule Scheduled Areas.

ANSWER-GRABBING LINE

It requires State Panchayat law to respect customary law, social and religious practices and traditional management of community resources.

MUST-WRITE KEYWORDS

PESA 1996; Article 243M; Fifth Schedule only; habitation; hamlet; Gram Sabha; custom

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: PESA adds participatory self-government to the Fifth Schedule's supervisory design. **Named evidence:** PESA section 4(a)-(d). **Analysis:** Its village concept can follow a habitation, hamlet or group managing affairs by custom.

Qualification: PESA does not apply to Sixth Schedule areas and custom remains subject to the Constitution and valid law.

EVIDENCE AND EXPLANATION

Source visual - From protected subject to self-governing participant

FIFTH SCHEDULE
protective administration
|
Part IX initially excluded by Article 243M
|
Bhuria Committee approach
|
PESA, 1996
|
custom + habitation village + Gram Sabha powers
|
development decisions become participatory and locally accountable

- [FACT] PESA requires State Panchayat law in Scheduled Areas to conform to customary law, social and religious practices and traditional management of community resources.
- [ANALYSIS] It adds a self-rule logic to a Schedule otherwise centred on the Governor, State and Union.
- [LIMIT] PESA operates through State legislation and implementation; central enactment alone does not create identical institutional practice everywhere.

Source visual - Habitation-based democratic unit

hamlet / habitation / group of habitations
|
community managing affairs by traditions and customs
|
v
PESA VILLAGE
|
all persons on village-level electoral rolls
|
v
GRAM SABHA

- [FACT] PESA's village conception is deliberately closer to lived community than a large administrative Gram Panchayat boundary.
- [FACT] Every Gram Sabha is competent to safeguard traditions, customs, cultural identity, community resources and customary dispute resolution.

- [LIMIT] Custom is constitutionally relevant but cannot be treated as immune from Fundamental Rights, statute or judicial review.

PESA VERB TABLE - EXAM-SAFE

Decision	Exact statutory intensity
village development plans/programmes/projects	Gram Sabha approval before implementation by village Panchayat
beneficiary selection	Gram Sabha identifies/selects
utilisation certificate	village Panchayat obtains Gram Sabha certification
land acquisition and R&R	consultation with Gram Sabha or Panchayat at appropriate level
minor-mineral prospecting licence/mining lease	mandatory prior recommendation of Gram Sabha or appropriate Panchayat
minor-mineral auction concession	prior recommendation of Gram Sabha or Panchayat at appropriate level
minor forest produce, markets, money-lending, intoxicants, land restoration, social sectors and local plans	State law must endow the Gram Sabha/Panchayat at the appropriate level as section 4(m) specifies

PRELIMS TRAP

PESA is not the statute creating ADCs.

MAINS USE

Use as the bridge from constitutional protection to community decision-making.

RECAP

Article 243M exclusion -> PESA extension -> habitation village -> Gram Sabha

SESSION 21 - PESA'S EXACT DECISION VERBS

VISUAL FIRST

DECISION TYPE -> EXACT VERB -> CORRECT INSTITUTION -> LEGAL EFFECT

Caption: decision type -> exact verb -> correct institution -> legal effect.

DEFINITION

PESA distributes power through different statutory verbs and institutional levels.

ANSWER-GRABBING LINE

Approve, identify, certify, consult, recommend, own, regulate, control and restore are not interchangeable.

MUST-WRITE KEYWORDS

approve; identify; certify; consult; prior recommendation; own; regulate; control; restore

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Precision about the verb identifies the legal intensity of community participation. **Named evidence:** PESA section 4(e)-(m). **Analysis:** Plans require approval; acquisition and R&R require consultation; specified minor-mineral decisions require prior recommendation; section 4(m) requires State-law endowment of resource and control powers.

Qualification: The Act does not create one universal Gram Sabha veto over every project.

EVIDENCE AND EXPLANATION

Source visual - Exact statutory verb matrix

Verb	Object	Holder/level under section 4
approve	social/economic development plans, programmes and projects before village-Panchayat implementation	Gram Sabha
identify/select	beneficiaries under poverty alleviation and other programmes	Gram Sabha
certify	utilisation of funds for relevant plans/programmes/projects	Gram Sabha certification obtained by village Panchayat
consult	land acquisition and resettlement/rehabilitation in Scheduled Areas	Gram Sabha or Panchayat at appropriate level
manage	planning and management of minor water bodies	Panchayat at appropriate level
recommend mandatorily	prospecting licence/mining lease for minor minerals	Gram Sabha or Panchayat at appropriate level
recommend mandatorily	concession for minor-mineral exploitation by auction	Gram Sabha or Panchayat at appropriate level
own / regulate / control / restore	specified resources and institutions	State law must endow Gram Sabha and Panchayats at appropriate level as section 4(m) states

Source visual - Section 4(m) substantive basket

ownership of minor forest produce
control of village markets
regulate money-lending to STs
regulate/restrict intoxicants
prevent land alienation + restore unlawfully alienated land
control social-sector institutions and functionaries
control local plans and resources, including tribal sub-plans

- [LIMIT] Attribute each power to the statutory formulation - "Gram Sabha or Panchayats at the appropriate level" where relevant - rather than assigning everything exclusively to one Gram Sabha.

Source visual - Legal intensity ladder

INFORMATION

<

CONSULTATION

views must be sought and considered

<

PRIOR / MANDATORY RECOMMENDATION

specified recommendation is a precondition

<

APPROVAL

plan/programme/project needs Gram Sabha approval before local implementation

- [FACT] PESA uses consultation before land acquisition and resettlement/rehabilitation.
- [FACT] It makes recommendations mandatory before specified minor-mineral licences/leases and concessions.
- [FACT] It requires Gram Sabha approval of local development plans, programmes and projects before village-Panchayat implementation.
- [FACT] The central Act keeps actual planning and implementation of acquisition-linked development projects coordinated at the State level.
- [LIMIT] These provisions do not amount to a universal consent/veto rule for every acquisition, major mineral, forest clearance or infrastructure project.

PRELIMS TRAP

Consultation is not consent; recommendation is not ownership.

MAINS USE

Use the verb matrix in every PESA answer.

RECAP

decision type -> exact verb -> correct institution -> legal effect

SESSION 22 - PESA LAND, MINERALS AND REPRESENTATION

VISUAL FIRST

REPRESENTATION + EXACT PROJECT VERB + RESTORATION + LOWER-LEVEL PROTECTION

Caption: representation + exact project verb + restoration + lower-level protection.

DEFINITION

PESA links community power to project stage, resource type and representative design.

ANSWER-GRABBING LINE

Land acquisition/R&R, minor-mineral licences and auctions, land restoration and Panchayat reservation follow different clauses.

MUST-WRITE KEYWORDS

land acquisition; R&R; minor minerals; restoration; half ST seats; ST chairpersons; subsidiarity

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Representation and decision rights together reduce external and internal exclusion. **Named evidence:** PESA section 4(i)-(o). **Analysis:** At least half the seats at every Panchayat level in Scheduled Areas are reserved for STs and all chairperson offices are reserved for STs. **Qualification:** Reservation does not prove effective voice, and PESA's mineral rule is confined to minor minerals.

EVIDENCE AND EXPLANATION

Source visual - Project-stage precision

PROPOSED ACTIVITY IN FIFTH SCHEDULE AREA

```
|
+--> land acquisition / R&R
|      -> consult GS or appropriate Panchayat
|
+--> minor-mineral prospecting licence / mining lease
|      -> mandatory prior recommendation
|
+--> minor-mineral concession by auction
|      -> prior recommendation of Gram Sabha or appropriate Panchayat
|
+--> forest land / recognised forest rights
|      -> FRA process + forest/environment law
```

- [ANALYSIS] Correct sequencing prevents a common answer error: using one PESA verb to describe a legally different stage.

Source visual - Scheduled-Area representation safeguards

Feature	PESA rule
ST seat reservation	not less than one-half of total seats at every Panchayat level in Scheduled Areas
chairpersons	all chairperson seats at all levels reserved for STs
unrepresented STs	State may nominate at intermediate/district level, within statutory ceiling
higher-level design	State law must not let higher Panchayat assume powers of lower Panchayat or Gram Sabha

- [ANALYSIS] PESA combines territorial self-government, substantive representation and subsidiarity.

- [FACT] PESA also asks State legislation to endeavour to follow the Sixth Schedule pattern while designing district-level administrative arrangements in Scheduled Areas.
- [LIMIT] Reservation supplies presence; actual influence still depends on meeting design, records, information and control over staff/resources.

PRELIMS TRAP

Do not extend the prior-recommendation rule to every major-mineral project.

MAINS USE

Use for institution-plus-process answers.

RECAP

representation + exact project verb + restoration + lower-level protection

SESSION 23 - FRA CROSS-LINK WITHOUT MERGER

VISUAL FIRST

FRA CLAIM -> GRAM SABHA RESOLUTION -> SDLC -> DLC -> RIGHTS + DUTIES

Caption: FRA claim -> Gram Sabha resolution -> SDLC -> DLC -> rights + duties.

DEFINITION

The Forest Rights Act 2006 recognises forest rights through a claims process distinct from PESA local self-government.

ANSWER-GRABBING LINE

The Gram Sabha initiates claims; community forest resource rights and conservation duties connect tenure with stewardship.

MUST-WRITE KEYWORDS

FRA 2006; individual rights; community rights; community forest resource; section 5; section 6

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Rights recognition changes whose livelihood, cultural and conservation interests must enter a decision.

Named evidence: FRA sections 3, 5 and 6. **Analysis:** PESA asks who participates with what local power; FRA asks who holds which forest right and duty. **Qualification:** Neither statute by itself transfers all forests or minerals to the Gram Sabha.

EVIDENCE AND EXPLANATION

Source visual - Rights-recognition ladder

```

GRAM SABHA
initiates claims + verifies evidence + maps rights
    |
    v
Sub-Divisional Level Committee
    |
    v
District Level Committee
final administrative decision under statutory process
    |
    v
individual / community / community forest resource rights
  
```

- [FACT] FRA section 6 makes the Gram Sabha the authority that initiates determination of individual and community forest rights.
- [FACT] Community Forest Resource rights include the right to protect, regenerate, conserve or manage a traditionally protected community forest resource.
- [FACT] Section 5 assigns holders/Gram Sabha duties to protect wildlife, forests and biodiversity, preserve catchments and ensure decisions on access are taken through regulated community processes.

- [LIMIT] FRA recognition does not transfer all forest administration or mineral ownership to the Gram Sabha.

Source visual - Two statutes, two primary functions

PESA	FRA
local self-government in Fifth Schedule areas	recognition and vesting of forest rights
customary institutions and community resources	individual, community and CFR rights
specified approval/consultation/recommendation powers	claims, title and conservation responsibilities
minor forest produce ownership route in State law	ownership/access/use/disposal rights over MFP under statutory rights framework

Source visual - Combined governance chain

PESA: WHO PARTICIPATES AND WITH WHAT LOCAL POWER?

+

FRA: WHO HOLDS WHICH FOREST RIGHT?

+

forest / environment / mining / land law

|

v

lawful project or conservation decision

- [ANALYSIS] PESA and FRA are complementary but not interchangeable. A project may satisfy one and still fail another legal requirement.

PRELIMS TRAP

Do not merge an FRA title with PESA consultation or constitutional area status.

MAINS USE

Use as a bounded cross-link in land and mining answers.

RECAP

FRA claim -> Gram Sabha resolution -> SDLC -> DLC -> rights + duties

SESSION 24 - LAND ALIENATION AND RESTORATION

VISUAL FIRST

RISK -> PROHIBITION -> RECORD -> FORUM -> RESTORATION

Caption: risk -> prohibition -> record -> forum -> restoration.

DEFINITION

Land protection requires prevention, accurate records, accessible adjudication and restoration of unlawful alienation.

ANSWER-GRABBING LINE

Fifth Schedule regulations and PESA State-law powers attack different stages of dispossession.

MUST-WRITE KEYWORDS

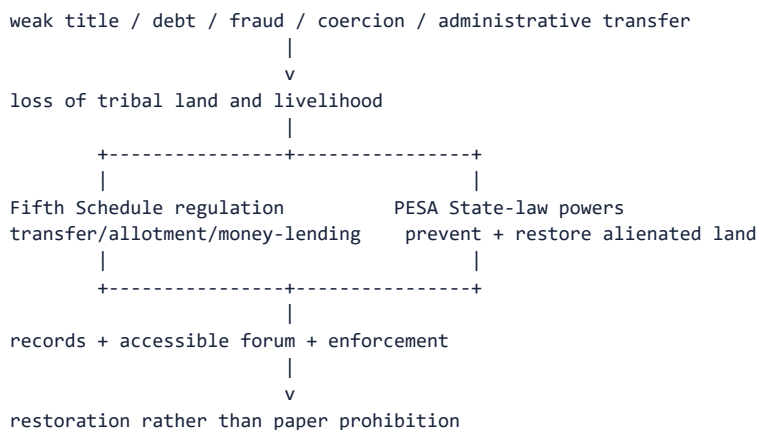
anti-alienation; land transfer; allotment; money-lending; prevention; restoration; records

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: A paper prohibition fails when title, debt, fraud and remedies remain inaccessible. **Named evidence:** Fifth Schedule paragraph 5 and PESA section 4(m)(iii). **Analysis:** Constitutional and statutory tools can move policy from compensation after loss to prevention and restitution. **Qualification:** The operative transfer restriction and remedy are State-specific.

EVIDENCE AND EXPLANATION

Source visual - Alienation control cycle



- [ANALYSIS] A prohibition without updated records, legal aid and restitution machinery can freeze illegality rather than reverse it.
- [LIMIT] The applicable land-transfer regulation is State-specific; never assume identical wording or remedies across all 10 States.

PRELIMS TRAP

Do not assume identical land-transfer law across all Scheduled Areas.

MAINS USE

Use to connect constitutional design with lived dispossession.

RECAP

risk -> prohibition -> record -> forum -> restoration

SESSION 25 - SAMATHA AND ITS JURISDICTIONAL BOUNDARY

VISUAL FIRST

STATE REGULATION + SCHEDULED AREA + IMPUGNED LEASE -> INVALID; NATIONWIDE RULE -> NO

Caption: State regulation + Scheduled Area + impugned lease -> invalid; nationwide rule -> no.

DEFINITION

Samatha v. State of Andhra Pradesh (1997) interpreted Andhra Pradesh's Scheduled Areas land-transfer regime to invalidate the impugned leases to non-tribal private mining companies.

ANSWER-GRABBING LINE

The case is a powerful anti-alienation precedent whose proposition must remain tied to its regulation, land and lessee context.

MUST-WRITE KEYWORDS

Samatha 1997; Andhra Pradesh regulation; non-tribal private mining lease; trustee; BALCO boundary

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Protective interpretation can stop the State from achieving indirectly what the transfer law prohibits directly.

Named evidence: Samatha v. State of Andhra Pradesh, (1997) 8 SCC 191. **Analysis:** The judgment linked Fifth Schedule purpose to land and livelihood protection. **Qualification:** Later jurisdictional treatment, including the BALCO context, prevents automatic nationwide transplantation.

EVIDENCE AND EXPLANATION

Source visual - Case-use discipline

Element	Safe proposition
case	<i>Samatha v. State of Andhra Pradesh</i> (1997)

Element	Safe proposition
legal setting	Andhra Pradesh Scheduled Areas Land Transfer Regulation read with Fifth Schedule
majority holding	State grants/leases of land in Scheduled Areas to non-tribal private mining companies were invalid under that regulatory setting
constitutional significance	State acts as trustee; anti-alienation purpose receives a protective reading
qualification	later treatment, including the BALCO context, prevents presenting the Andhra Pradesh regulation-based holding as an automatic nationwide rule for every State

- [LIMIT] Do not convert *Samatha* into the sentence "all mining by every private company in every Scheduled Area is constitutionally prohibited." Identify the State regulation, land status, lessee and later legal context.

PRELIMS TRAP

Never write 'all private mining in every Scheduled Area is void'.

MAINS USE

Use as named evidence for land protection with an express scope sentence.

RECAP

State regulation + Scheduled Area + impugned lease -> invalid; nationwide rule -> no

SESSION 26 - NIYAMGIRI AND GRAM SABHA DETERMINATION

VISUAL FIRST

CLAIMS -> GRAM SABHA FINDINGS -> STATE TRANSMITS -> MOEF FINAL DECISION

Caption: claims -> Gram Sabha findings -> State transmits -> MoEF final decision.

DEFINITION

Orissa Mining Corporation v. MoEF (2013) required Gram Sabhas to determine specified FRA-linked community, cultural and religious claims concerning Niyamgiri.

ANSWER-GRABBING LINE

The decision made local evidence legally consequential while retaining the final Stage-II forest-clearance decision with MoEF.

MUST-WRITE KEYWORDS

Niyamgiri; Dongria Kondh; FRA; religious rights; community claims; MoEF Stage II

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Participation changes the evidence before the final statutory authority. **Named evidence:** Orissa Mining Corporation Ltd. v. Ministry of Environment and Forest, 18 April 2013. **Analysis:** Sacred-landscape and community relationships could not be reduced to compensation alone. **Qualification:** The holding was project-, claim- and statute-specific, not an unlimited veto over every project.

EVIDENCE AND EXPLANATION

Source visual - Supreme Court's actual process

FRA individual/community/cultural/religious claims

|

v

Gram Sabhas consider and decide those claims
with State/MoTA assistance and judicial observer

|

v

decisions communicated through State to MoEF

|

v

MoEF takes final Stage-II forest-clearance decision
in light of Gram Sabha decisions

- [FACT] The Court held that Gram Sabhas had a role in safeguarding customary and religious rights under FRA read with PESA.
- [FACT] It directed consideration of whether mining would affect worship of Niyam Raja and other community, individual, cultural and religious claims.
- [FACT] The final Stage-II clearance decision remained with MoEF, to be taken in light of Gram Sabha decisions.
- [LIMIT] The judgment is not authority for an unqualified Gram Sabha veto over every mine or ordinary EIA hearing.

PRELIMS TRAP

Gram Sabha determination and final clearance authority are separate stages.

MAINS USE

Use to show rights-sensitive administrative decision-making.

RECAP

claims -> Gram Sabha findings -> State transmits -> MoEF final decision

SESSION 27 - CHEBROLU, WILDLIFE FIRST AND JUDICIAL REVIEW

VISUAL FIRST

PROTECTIVE PURPOSE -> LAWFUL MEANS -> REASONS/PROCEDURE -> JUDICIAL REVIEW

Caption: protective purpose -> lawful means -> reasons/procedure -> judicial review.

DEFINITION

Protective governance remains reviewable for equality, legality, procedure and constitutional purpose.

ANSWER-GRABBING LINE

Chebrolu Leela Prasad Rao (2020) invalidated 100 percent ST reservation for specified teacher posts in Scheduled Areas; Wildlife First's 2019 eviction direction was stayed pending scrutiny of rejected FRA claims.

MUST-WRITE KEYWORDS

Chebrolu 2020; equality; 100 percent reservation; Wildlife First; procedural stay; judicial review

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Courts can protect tribal rights and also police overbroad or procedurally defective measures. **Named evidence:** Articles 14 and 16; Fifth Schedule paragraph 5; Supreme Court orders. **Analysis:** Chebrolu shows that Scheduled-Area protection does not displace equality limits. **Qualification:** Wildlife First should be used only for procedural posture unless a final merits rule is verified.

EVIDENCE AND EXPLANATION

Source visual - Rights-impact chain

mineral / infrastructure proposal
 |
 land take + forest diversion + ecological change
 |
 livelihood + culture + sacred landscape + settlement impact
 |
 PESA + FRA + land-transfer law + acquisition/R&R + environment law
 |
 participatory evidence and reasoned decision
 |
 avoid | redesign | condition | compensate/rehabilitate | reject

Source visual - Claim-evidence-analysis-qualification example

Step	Answer-writing content
claim	participation changes what counts as project impact
named evidence	<i>Orissa Mining Corporation</i> required Gram Sabha determination of FRA-linked cultural/religious claims
analysis	sacred and community relationships cannot be reduced to market compensation
qualification	MoEF retained the final clearance function; other statutory routes still applied

Source visual - Constitutional rights web

Provision	Scheduled/tribal-area application
Article 14	non-arbitrary classification and administration
Article 19	movement, residence, occupation subject to valid protections/restrictions
Article 21	dignity, livelihood, fair procedure and cultural conditions of life
Articles 25-26	religious practice and sacred-landscape claims, as applied in Niyamgiri
Article 29(1)	conserve distinct language, script or culture
Article 46	promote educational/economic interests of STs and protect from social injustice/exploitation
Article 300A	deprivation of property only by authority of law

- [ANALYSIS] The Schedules operationalise substantive equality but do not displace Part III.
- [LIMIT] No single Article automatically decides a project; the correct answer integrates rights, enabling statutes, public purpose and proportionality.

CASE-LAW CONTROL

- [FACT] *Chebrolu Leela Prasad Rao v. State of Andhra Pradesh* (2020) invalidated 100 percent reservation of specified teacher posts for ST candidates in Scheduled Areas. Fifth Schedule protective power cannot become an equality-free zone.
- [FACT] In *Wildlife First v. MoEFCC*, the Supreme Court's February 2019 direction concerning rejected FRA claimants was stayed later that month while States were required to examine process and data. It is used here only as procedural posture, not a final merits rule authorising mass eviction.

PRELIMS TRAP

Do not cite a stayed interim direction as final eviction law.

MAINS USE

Use to demonstrate that neither executive protection nor conservation administration is beyond review.

RECAP

protective purpose -> lawful means -> reasons/procedure -> judicial review

SESSION 28 - INTEGRATED LAND AND RESOURCE DECISION CHAIN

VISUAL FIRST

STATUS -> TRANSFER LAW -> PESA -> FRA -> APPRAISAL -> REASONED DECISION -> REMEDY

Caption: status -> transfer law -> PESA -> FRA -> appraisal -> reasoned decision -> remedy.

DEFINITION

A lawful resource decision in a tribal area is cumulative rather than satisfied by one meeting, clearance or payment.

ANSWER-GRABBING LINE

Territorial status, State land law, PESA, FRA, acquisition/R&R, forest/environment law and reasoned alternatives operate in sequence.

MUST-WRITE KEYWORDS

cumulative compliance; land status; PESA stage; FRA rights; clearance; R&R; remedy

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Sequencing prevents one institution from erasing another's legal function. **Named evidence:** Fifth Schedule, PESA, FRA and the Samatha/Niyamgiri lines. **Analysis:** The decision-maker must identify rights and participation before evaluating impact and alternatives. **Qualification:** Royalty, consultation, title and clearance are legally distinct.

EVIDENCE AND EXPLANATION

Source visual - Rights-impact chain

```

mineral / infrastructure proposal
|
land take + forest diversion + ecological change
|
livelihood + culture + sacred landscape + settlement impact
|
PESA + FRA + land-transfer law + acquisition/R&R + environment law
|
participatory evidence and reasoned decision
|
avoid | redesign | condition | compensate/rehabilitate | reject
    
```

Source visual - Claim-evidence-analysis-qualification example

Step	Answer-writing content
claim	participation changes what counts as project impact
named evidence	<i>Orissa Mining Corporation</i> required Gram Sabha determination of FRA-linked cultural/religious claims
analysis	sacred and community relationships cannot be reduced to market compensation
qualification	MoEF retained the final clearance function; other statutory routes still applied

Source visual - Five-accountability model

ELECTORAL	council / Panchayat representatives
LEGAL	Constitution, PESA, FRA, land and environment law
FISCAL	grants, council funds, audit and utilisation records
ADMINISTRATIVE	Governor/State/Union reporting and directions
SOCIAL	Gram Sabha, public records, grievance and community monitoring

Source visual - Common accountability failures

Failure	Institutional effect
TAC agenda controlled from above	advice becomes ceremonial
Governor reports not transparent	Union supervision lacks public evidence

Failure	Institutional effect
council law awaits assent without timelines	autonomy becomes administrative delay
parallel departments retain staff/funds	responsibility without control
Gram Sabha record is poor or manipulated	participation becomes formal compliance
land/FRA records are incomplete	rights cannot survive project appraisal

PRELIMS TRAP

Compensation is not consent; royalty is not ownership; consultation is not title.

MAINS USE

Use as the analytical centre of a 20-mark mining answer.

RECAP

status -> transfer law -> PESA -> FRA -> appraisal -> reasoned decision -> remedy

SESSION 29 - ACCOUNTABILITY AND IMPLEMENTATION INSTITUTIONS

VISUAL FIRST

POWER -> ACTOR -> RECORD -> RESOURCE -> REVIEW -> REMEDY

Caption: power -> actor -> record -> resource -> review -> remedy.

DEFINITION

Constitutional powers produce outcomes only when reports, records, staff, funds, reasons and remedies connect.

ANSWER-GRABBING LINE

Governor reports, TAC advice, council funds, Gram Sabha records and administrative agencies each serve different roles.

MUST-WRITE KEYWORDS

public report; action-taken response; land/CFR record; staff-fund map; audit; ITDA; STC/TSP

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Visible decision chains reduce both paternalism and blame-shifting. **Named evidence:** Fifth/Sixth Schedule text, PESA/FRA procedure and administrative programme instruments. **Analysis:** Integrated Tribal Development Agencies and the Scheduled Tribe Component/older Tribal Sub-Plan terminology are administrative planning devices, not constitutional substitutes. **Qualification:** Counts, allocations and institutional forms vary by State and date and should be quoted only from current official sources.

EVIDENCE AND EXPLANATION

Source visual - Five-accountability model

ELECTORAL	council / Panchayat representatives
LEGAL	Constitution, PESA, FRA, land and environment law
FISCAL	grants, council funds, audit and utilisation records
ADMINISTRATIVE	Governor/State/Union reporting and directions
SOCIAL	Gram Sabha, public records, grievance and community monitoring

Source visual - Common accountability failures

Failure	Institutional effect
TAC agenda controlled from above	advice becomes ceremonial
Governor reports not transparent	Union supervision lacks public evidence

Failure	Institutional effect
council law awaits assent without timelines	autonomy becomes administrative delay
parallel departments retain staff/funds	responsibility without control
Gram Sabha record is poor or manipulated	participation becomes formal compliance
land/FRA records are incomplete	rights cannot survive project appraisal

Source visual - Official rule-status snapshot, 19 Aug 2026

Official MoPR listing includes	Current qualification
Andhra Pradesh 2011	implementation quality must be separately assessed
Telangana adoption in 2014	State adaptation and practice matter
Himachal Pradesh 2011	rules do not prove devolution
Rajasthan Act 1999 / Rules 2011	verify current amendments for granular claims
Maharashtra 2014	sectoral-law conformity remains relevant
Gujarat 2017 and amendment	compliance is multi-law
Chhattisgarh 2022	recent rule does not erase capacity gaps
Madhya Pradesh 2022	same qualification
Jharkhand Rules 2025	official listing uploaded/updated in 2026
Odisha	no separate notified Rules instrument appears in the official central listing

- [CURRENT] The safe summary is **nine listed rule regimes for ten PESA States**, with Odisha the listed gap.
- [LIMIT] Do not equate "rules notified" with "PESA fully implemented"; conformity of excise, markets, money-lending, land, minor minerals, forest produce and Panchayat laws must also be tested.

Source visual - From legal power to usable power

Gap	Reform design	Evidence discipline
inaccessible law	local-language power cards and habitation maps	name PESA sections
weak meetings	notice, quorum, women/PVTG access and independent facilitation	do not count attendance as voice
poor records	geo-referenced land/CFR maps and public minutes	protect privacy and customary knowledge
fragmented departments	convergence protocol across Tribal, Panchayat, Forest, Revenue and Mining departments	convergence cannot override rights
TAC dormancy	mandatory calendar, public agenda and reasoned response	preserve advisory status
council assent delay	transparent timelines and reasons	retain constitutional checks
displaced responsibility	activity/staff/fund mapping	autonomy requires implementable functions
weak remedy	accessible appeal, legal aid and restoration tracking	remedy must follow violation

Source visual - ITDA / programme control

constitutional institution? NO
 administrative implementation vehicle? OFTEN, STATE-SPECIFIC
 can it replace TAC / Gram Sabha / ADC? NO
 can convergence programme waive PESA/FRA? NO

- [ANALYSIS] Integrated Tribal Development Agencies/Projects and current convergence programmes may coordinate delivery, but their mandate and territorial form are administrative and State-specific.
- [LIMIT] Do not quote an ITDA count, dashboard total or programme reach without a dated official source.

PRELIMS TRAP

Do not treat an ITDA, TAC, Gram Sabha and ADC as interchangeable.

MAINS USE

Use to move from diagnosis to implementable reform.

RECAP

power -> actor -> record -> resource -> review -> remedy

SESSION 30 - EXTENSION DEBATES AND CALIBRATED REFORM

VISUAL FIRST

NEED -> COMPARE MODELS -> CONSULT -> LEGISLATE -> REVIEW OUTCOMES

Caption: need -> compare models -> consult -> legislate -> review outcomes.

DEFINITION

Extension of Sixth Schedule-style autonomy should follow institutional fit, affected-community consultation and enacted legal design.

ANSWER-GRABBING LINE

Ladakh's demands illustrate why demographic description alone cannot create constitutional status.

MUST-WRITE KEYWORDS

territorial fit; customary institutions; minority safeguards; fiscal viability; hill council; enacted change

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: The choice is among institutional designs, not between protection and no protection. **Named evidence:** Article 244, Article 244A, Article 371 models and statutory hill-council possibilities. **Analysis:** A tailored framework may combine land, culture, representation and accountability safeguards. **Qualification:** No political demand or committee discussion equals constitutional inclusion.

EVIDENCE AND EXPLANATION

Source visual - Extension test

Question	Analytical test
Is tribal population high?	relevant but not sufficient
Are land, culture and employment safeguards needed?	identify concrete risk
Which model fits?	Sixth Schedule, Article 371-type protection, stronger hill councils or legislation may differ
What democratic unit?	village, hill council, ADC or legislature
What State/UT relation?	Sixth Schedule text currently names four States
What legal change?	requires enacted constitutional/legal action, not demand alone

- [CURRENT] Ladakh's constitutional-safeguard demand remains under official dialogue; Sixth Schedule status has not been granted.

- [ANALYSIS] The strongest answer compares institutional fit rather than assuming that the Sixth Schedule is the only possible safeguard.

Source visual - Eight-point reform compass

- 1 territorial accuracy
- 2 subsidiarity
- 3 legally precise participation
- 4 secure land and forest records
- 5 accountable Governor/State/Union action
- 6 council fiscal and staff capacity
- 7 rights-respecting development sequencing
- 8 transparent review with remedies

- [ANALYSIS] Reform should convert protection into agency without romanticising custom or weakening constitutional rights.

PRELIMS TRAP

Do not state that Ladakh presently has Sixth Schedule status.

MAINS USE

Use for a balanced reform conclusion.

RECAP

need -> compare models -> consult -> legislate -> review outcomes

SESSION 31 - PRELIMS TRAPS AND MAINS ANSWER SPINE

VISUAL FIRST

DEFINE -> MAP -> MECHANISM -> EVIDENCE -> ANALYSIS -> LIMIT -> REFORM

Caption: define -> map -> mechanism -> evidence -> analysis -> limit -> reform.

DEFINITION

A high-scoring answer identifies the territory, legal source, institution, exact power, assent route, evidence and qualification.

ANSWER-GRABBING LINE

Most errors arise from collapsing the Fifth Schedule, Sixth Schedule, PESA, FRA, Article 371 and statutory councils.

MUST-WRITE KEYWORDS

territory; source; actor; verb; assent; named evidence; qualification; reform

TOPIC-SPECIFIC PARAGRAPH LAB

Claim: Legal precision converts a descriptive list into constitutional analysis. **Named evidence:** Article 244 architecture and the verified PYQ pattern. **Analysis:** The answer spine works for comparison, land conflict, autonomy and accountability questions. **Qualification:** A list of Articles without mechanism or limits is incomplete.

EVIDENCE AND EXPLANATION

Source visual - High-frequency reversals

Wrong	Correct
Fifth Schedule applies to Assam, Meghalaya, Tripura, Mizoram	Sixth Schedule applies there
Governor declares Scheduled Areas	President declares by order
Governor declares Scheduled Tribes	President specifies under Article 342; Parliament alters
TAC legislates	TAC advises
State loses executive power in Scheduled Area	State power continues under report/direction supervision

Wrong	Correct
Governor's regulation needs Governor assent	it needs President's assent
ADC has 30 elected members everywhere	ordinary maximum 30 with nominations; special exceptions exist
ADC controls reserved forests	paragraph 3 excludes reserved forests
PESA applies to Sixth Schedule areas	PESA applies to Fifth Schedule Scheduled Areas
PESA means consent for every project	verbs vary by subject and stage
Niyamgiri made Gram Sabha final clearance authority	MoEF retained final Stage-II decision in light of Gram Sabha decisions
Article 371 equals Sixth Schedule	separate constitutional techniques

Source visual - Evidence-led paragraph

CLAIM

- > NAMED CONSTITUTIONAL / STATUTORY / JUDICIAL EVIDENCE
- > WHAT THE MECHANISM DOES
- > WHY IT MATTERS
- > IMPLEMENTATION OR DOCTRINAL QUALIFICATION
- > MINI-VERDICT

Example

- **Claim:** PESA is stronger than generic consultation.
- **Evidence:** section 4(e) requires Gram Sabha approval of local plans; section 4(i) uses consultation for acquisition/R&R; sections 4(k)-(l) make recommendations mandatory for specified minor-mineral decisions.
- **Analysis:** Parliament calibrated community power to the decision type.
- **Qualification:** it did not enact one universal veto.
- **Mini-verdict:** legal precision strengthens, rather than weakens, the case for meaningful participation.

Source visual - Demand-to-thesis matrix

Demand	Defensible thesis
rationale	differentiated administration is justified by substantive equality, but must convert protection into agency
Fifth Schedule	strong supervisory powers are weakened by opaque reporting, TAC agenda control and implementation dormancy
Sixth Schedule	councils create real legislative-executive-fiscal autonomy, yet remain subject-specific and State-supervised
comparison	Fifth is guardian-centred protection; Sixth is council-centred self-government
PESA	section 4 is a calibrated power code, not a universal veto
FRA link	tenure recognition and community forest governance make participation materially meaningful
mining conflict	lawful development requires cumulative compliance, not substitution of one clearance for another
reform	transparency, records, capacity and remedy must connect constitutional text to community power

PRELIMS TRAP

President area/assent regulation; Governor district/assent council law.

MAINS USE

Use as the final writing checklist.

RECAP

define -> map -> mechanism -> evidence -> analysis -> limit -> reform

This section contains exactly 32 original MCQs before the PYQs. The answer sequence is ABCD repeated eight times. Every option has a distinct question-specific explanation and every question has a unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1

Which mapping is constitutionally correct?

A. Article 244(1) applies the Fifth Schedule. B. Article 244(1) applies the Sixth Schedule. C. Article 244(2) applies PESA. D. Article 244A declares Scheduled Areas.

Answer: A.

Option explanations

- A: Correct: clause (1) applies the Fifth Schedule to its defined field.
- B: Clause (2), not clause (1), applies the Sixth Schedule.
- C: PESA is a 1996 statute extending modified Part IX.
- D: Article 244A enables an autonomous State within Assam.

Examiner trap 1: Map the clause before recalling the institution.

MCQ 2

The Fifth Schedule applies to Scheduled Areas in:

A. all States including the four Sixth Schedule States. B. States other than Assam, Meghalaya, Tripura and Mizoram. C. only the four North-Eastern States. D. Union Territories alone.

Answer: B.

Option explanations

- A: The constitutional text expressly excludes the four Sixth Schedule States.
- B: Correct: Article 244(1) states this territorial rule.
- C: Those four States are the field of Article 244(2).
- D: The Fifth Schedule is framed for States, not a UT-only category.

Examiner trap 2: A State may contain both scheduled and non-scheduled territory.

MCQ 3

Legal status as a Scheduled Area is created by:

A. a TAC resolution. B. a State Cabinet memorandum. C. a Presidential order under paragraph 6. D. an Autonomous District Council law.

Answer: C.

Option explanations

- A: TAC advice cannot notify territory.
- B: Administrative recommendation does not create constitutional status.
- C: Correct: paragraph 6 uses the Presidential-order route.
- D: An ADC operates under the Sixth Schedule.

Examiner trap 3: Official criteria guide identification; the order creates status.

MCQ 4

Which statement on administration of a Fifth Schedule area is correct?

A. A local body assumes total administration. B. The Union automatically replaces the State. C. The TAC becomes the executive government. D. State executive power continues, with Governor reports and Union directions.

Answer: D.

Option explanations

- A: No such automatic local takeover exists.
- B: The Union has a direction power, not automatic total administration.
- C: TAC is advisory rather than executive.
- D: Correct: paragraph 3 preserves State administration within supervision.

Examiner trap 4: Supervision is not substitution.

MCQ 5

The ordinary TAC composition rule is:

A. not more than twenty, with about three-fourths ST Assembly representatives. B. thirty members, all elected. C. forty-six members, including six nominees. D. a body composed only of officials.

Answer: A.

Option explanations

- A: Correct: this is paragraph 4, including the shortfall mechanism.
- B: Thirty is associated with the ordinary Sixth Schedule council ceiling.
- C: Forty-six is the Bodoland-specific design.
- D: The Schedule seeks tribal representative membership, not an official-only board.

Examiner trap 5: Remember 'twenty and three-fourths', not 'thirty and four'.

MCQ 6

A Tribes Advisory Council primarily:

A. enacts binding land laws. B. advises on ST welfare and advancement matters referred by the Governor. C. decides appeals from village courts. D. levies land revenue.

Answer: B.

Option explanations

- A: The Governor, not TAC, makes paragraph 5 regulations.
- B: Correct: referral and advice define TAC's role.
- C: Village/council courts belong to the Sixth Schedule.
- D: TAC has no constitutional tax power.

Examiner trap 6: Advisory representation is not territorial government.

MCQ 7

A Governor-made Fifth Schedule regulation becomes effective after:

A. State Cabinet publication alone. B. Governor assent. C. Presidential assent. D. approval by an ADC.

Answer: C.

Option explanations

- A: Publication alone cannot replace the assent condition.
- B: The Governor makes the regulation rather than assenting to it.
- C: Correct: paragraph 5 requires submission to and assent by the President.

- D: An ADC has no role in a Fifth Schedule regulation.

Examiner trap 7: Keep the Fifth-President and Sixth-Governor assent reversal clear.

MCQ 8

Parliament may amend the Fifth Schedule:

A. only through a referendum. B. only after ratification by half the States. C. only under Article 368 special majority. D. by ordinary law under paragraph 7, not deemed an Article 368 amendment.

Answer: D.

Option explanations

- A: No referendum route is prescribed.
- B: State ratification is not the paragraph 7 mechanism.
- C: Paragraph 7 expressly excludes Article 368 treatment.
- D: Correct: the Schedule contains its own amendment route.

Examiner trap 8: Special constitutional text can itself prescribe ordinary-law alteration.

MCQ 9

Article 244A enables Parliament to:

A. form an autonomous State within Assam with a legislature, Council of Ministers or both. B. notify Scheduled Areas throughout India. C. specify Scheduled Tribes. D. create every statutory hill council.

Answer: A.

Option explanations

- A: Correct: this is the Assam-only autonomous-State route.
- B: Fifth Schedule paragraph 6 supplies that notification route.
- C: Article 342 supplies the ST-specification route.
- D: Statutory councils depend on their enabling Acts.

Examiner trap 9: An autonomous State route is distinct from an autonomous district.

MCQ 10

The Sixth Schedule's exact State set is:

A. Assam, Nagaland, Manipur and Mizoram. B. Assam, Meghalaya, Tripura and Mizoram. C. all eight North-Eastern States. D. Meghalaya, Tripura, Mizoram and Arunachal Pradesh.

Answer: B.

Option explanations

- A: Nagaland and Manipur use other constitutional arrangements.
- B: Correct: use the AMTM mnemonic.
- C: The Schedule is not pan-North-East.
- D: Arunachal Pradesh is not in the Article 244(2) set.

Examiner trap 10: Geography is a high-frequency elimination tool.

MCQ 11

Where different Scheduled Tribes inhabit parts of an autonomous district, the Governor may:

A. declare a Fifth Schedule area. B. specify the ST list. C. divide the area into autonomous regions. D. create a new State without Parliament.

Answer: C.

Option explanations

- A: Scheduled Area declaration is a Presidential route.
- B: Article 342 concerns tribe specification.
- C: Correct: autonomous regions protect internal territorial diversity.
- D: State creation requires parliamentary constitutional procedure.

Examiner trap 11: District contains region; region does not become a State.

MCQ 12

Under the ordinary paragraph 2 model, a District Council has:

A. exactly thirty elected members. B. twenty members with three-fourths ST MLAs. C. forty-six members in every State. D. not more than thirty, up to four nominated and the rest elected.

Answer: D.

Option explanations

- A: Thirty is a ceiling and nominees are permitted.
- B: That is a distorted TAC rule.
- C: Forty-six is a bounded Bodoland exception.
- D: Correct: this is the ordinary constitutional model.

Examiner trap 12: Do not convert a ceiling into a compulsory composition.

MCQ 13

Which statement accurately describes the Bodoland Territorial Council?

A. It has a special up-to-forty-six design: forty elected and six nominated. B. It follows the twenty-member TAC rule. C. It is an autonomous State under Article 244A. D. It is a statutory council outside the Sixth Schedule.

Answer: A.

Option explanations

- A: Correct: the 2003 amendment supplies the bounded exception.
- B: TAC belongs to the Fifth Schedule.
- C: Article 244A has not converted BTC into an autonomous State.
- D: BTC is constitutionally located in the Sixth Schedule.

Examiner trap 13: State-specific exception must stay attached to Bodoland.

MCQ 14

Which is within the ordinary paragraph 3 legislative field?

A. reserved forests. B. regulation of shifting cultivation. C. currency. D. defence.

Answer: B.

Option explanations

- A: The text covers forests other than reserved forests.
- B: Correct: shifting cultivation is expressly listed.
- C: Currency is a Union field outside this grant.

- D: Defence is not a council subject.

Examiner trap 14: The adjective 'reserved' decides the forest option.

MCQ 15

An ordinary District or Regional Council law under paragraph 3 takes effect after:

A. Presidential assent in every case. B. TAC approval. C. Governor's assent. D. Supreme Court certification.

Answer: C.

Option explanations

- A: President is not the routine assent authority for ordinary council laws.
- B: TAC is a Fifth Schedule advisory body.
- C: Correct: the Governor's assent is the ordinary rule.
- D: Courts review disputes; they do not certify every council law.

Examiner trap 15: Do not import the Fifth Schedule assent rule.

MCQ 16

Sixth Schedule village or council courts:

A. replace the High Court. B. exercise unlimited criminal jurisdiction. C. hear every dispute involving any resident. D. exercise specified jurisdiction within territorial, party and legal limits.

Answer: D.

Option explanations

- A: High Court jurisdiction remains constitutionally available.
- B: The Schedule and rules bound criminal competence.
- C: Party and territorial conditions matter.
- D: Correct: customary justice is constitutionally nested.

Examiner trap 16: Local justice is not judicial sovereignty.

MCQ 17

A Sixth Schedule council may constitutionally:

A. assess and collect land revenue and levy specified taxes. B. levy any tax in the Seventh Schedule. C. appropriate the Consolidated Fund of India. D. abolish State audit.

Answer: A.

Option explanations

- A: Correct: paragraphs 7 and 8 create enumerated fiscal powers.
- B: Council taxing power is not plenary.
- C: The Union fund is outside council appropriation.
- D: Council funds remain subject to accounting and audit.

Examiner trap 17: Enumerated fiscal autonomy is not sovereign taxation.

MCQ 18

Paragraph 10 principally concerns:

A. declaration of Scheduled Areas. B. regulation and licensing of money-lending and trading by non-tribals. C. formation of an autonomous State. D. specification of Scheduled Tribes.

Answer: B.

Option explanations

- A: That is a Fifth Schedule Presidential function.
- B: Correct: the paragraph uses council regulation, supermajority and Governor assent.
- C: Article 244A supplies that route.
- D: Article 342 supplies the specification route.

Examiner trap 18: Licensing power has its own supermajority and established-trader limit.

MCQ 19

Paragraph 9 of the Sixth Schedule provides for:

A. council ownership of all subsoil minerals. B. a Gram Sabha veto over mining. C. an agreed share of mineral royalties, with Governor determination of disputes. D. automatic transfer of mining leases to the council.

Answer: C.

Option explanations

- A: The Schedule does not vest all mineral ownership.
- B: PESA/FRA procedures are different legal questions.
- C: Correct: it is a State-Council revenue-sharing mechanism.
- D: The lease remains governed by applicable mining and land law.

Examiner trap 19: Royalty share is neither title nor consent.

MCQ 20

Which statement on application of laws is correct?

A. All four States use one identical council-consent rule. B. Every parliamentary Act is automatically excluded. C. State Acts always prevail in every State. D. Paragraphs 12, 12A, 12AA and 12B create different State-specific filters.

Answer: D.

Option explanations

- A: The Constitution deliberately differentiates the four States.
- B: Presidential or gubernatorial filtering depends on the paragraph.
- C: Meghalaya's repugnancy rule cannot be universalised.
- D: Correct: name the State, paragraph, actor and law class.

Examiner trap 20: A blanket non-application sentence is constitutionally unsafe.

MCQ 21

Under the ordinary Sixth Schedule control sequence:

A. a paragraph 14 commission can support a paragraph 16 dissolution route. B. the President dissolves every council at pleasure. C. TAC advice is compulsory before suspension. D. Article 356 automatically follows a council dispute.

Answer: A.

Option explanations

- A: Correct: commission, recommendation and bounded reconstitution/interim administration are linked.
- B: The ordinary actor is the Governor under specified conditions.

- C: TAC is not a Sixth Schedule body.
- D: Council control mechanisms are distinct from President's Rule.

Examiner trap 21: Separate commission, suspension and dissolution paragraphs.

MCQ 22

Which comparison is legally sound?

A. Every hill council is a Sixth Schedule ADC. B. A constitutional ADC, statutory council and Article 371 committee derive powers from different sources. C. Article 371B creates a District Council. D. PESA creates the Manipur Hill Areas Committee.

Answer: B.

Option explanations

- A: Institutional name cannot prove constitutional source.
- B: Correct: source determines field, finance and review.
- C: Article 371B concerns an Assam Assembly committee.
- D: The Hill Areas Committee derives from Article 371C arrangements.

Examiner trap 22: Decode source before comparing powers.

MCQ 23

PESA 1996 extends modified Part IX to:

A. Sixth Schedule tribal areas only. B. all rural India without exception. C. Fifth Schedule Scheduled Areas. D. only forest villages.

Answer: C.

Option explanations

- A: PESA does not govern Sixth Schedule areas.
- B: Ordinary Part IX and PESA have different fields.
- C: Correct: this is the statute's territorial purpose.
- D: Its village concept is wider than only forest villages.

Examiner trap 23: PESA is the Fifth Schedule bridge.

MCQ 24

PESA's village concept may be based on:

A. only a district headquarters. B. only a revenue district. C. only a statutory municipality. D. a habitation, hamlet or group managing affairs by traditions and customs.

Answer: D.

Option explanations

- A: A headquarters is not the statutory definition.
- B: The unit is intentionally more local than a district.
- C: Municipal territory is not the PESA village model.
- D: Correct: the law recognises lived community organisation.

Examiner trap 24: Do not force the habitation into a large Gram Panchayat boundary.

MCQ 25

Before village-Panchayat implementation, PESA requires the Gram Sabha to:

A. approve local social and economic development plans, programmes and projects. B. assent to every State Act. C. issue mining leases for major minerals. D. declare the area scheduled.

Answer: A.

Option explanations

- A: Correct: section 4(e) uses approval for this local-development stage.
- B: Legislative assent is not a Gram Sabha function.
- C: The Act does not confer general major-mineral leasing power.
- D: Scheduled Area status comes by Presidential order.

Examiner trap 25: Use 'approve' only for the decision that section 4 assigns it.

MCQ 26

Before land acquisition and R&R in Scheduled Areas, the central PESA text requires:

A. universal Gram Sabha consent. B. consultation with the Gram Sabha or Panchayat at the appropriate level. C. President's assent. D. District Council legislation.

Answer: B.

Option explanations

- A: The statute uses consultation, not a universal consent formula.
- B: Correct: section 4(i) uses this exact intensity.
- C: Presidential assent belongs to Fifth Schedule regulations.
- D: ADCs are Sixth Schedule institutions.

Examiner trap 26: Consultation and consent are not synonyms.

MCQ 27

For specified minor-mineral prospecting licences or mining leases, PESA requires:

A. TAC enactment. B. MoEF title recognition. C. mandatory prior recommendation of the named local institution. D. Article 244A approval.

Answer: C.

Option explanations

- A: TAC advises; it does not issue the statutory recommendation.
- B: FRA title and forest clearance are distinct.
- C: Correct: section 4(k)-(l) uses prior recommendation for specified minor-mineral decisions.
- D: Article 244A concerns an autonomous State in Assam.

Examiner trap 27: Minor mineral is essential; do not generalise to every mineral.

MCQ 28

PESA section 4(m) directs State law to endow powers concerning:

A. foreign affairs and currency. B. Supreme Court appointments. C. national defence and railways. D. minor forest produce, markets, money-lending, intoxicants, land restoration and local institutions.

Answer: D.

Option explanations

- A: Those are not local Scheduled-Area powers.
- B: Judicial appointments are constitutionally separate.

- C: These Union subjects are outside section 4(m).
- D: Correct: the basket connects resources, markets, services and restoration.

Examiner trap 28: Assign each power to the Gram Sabha or appropriate Panchayat as the clause states.

MCQ 29

Under FRA 2006, the forest-rights claims process begins with:

A. the Gram Sabha. B. the TAC. C. the District Council in every State. D. the President.

Answer: A.

Option explanations

- A: Correct: section 6 makes it the initiating authority.
- B: TAC has no FRA claims jurisdiction.
- C: ADCs exist only in the Sixth Schedule field.
- D: The President does not verify individual claims.

Examiner trap 29: Initiation by Gram Sabha is not final decision by Gram Sabha alone.

MCQ 30

The Niyamgiri judgment is best stated as:

A. a nationwide veto over every mine. B. Gram Sabha determination of specified FRA-linked claims, followed by MoEF's final Stage-II decision. C. transfer of all mineral ownership to the Dongria Kondh. D. abolition of forest-clearance law.

Answer: B.

Option explanations

- A: The holding was project- and statute-specific.
- B: Correct: community findings and final clearance authority were separate.
- C: The judgment did not confer subsoil ownership.
- D: It operated within, not outside, the forest-clearance framework.

Examiner trap 30: Do not convert consequential participation into an unlimited veto.

MCQ 31

The safest use of Samatha (1997) is:

A. Fifth Schedule itself bans all private mining nationally. B. the case has no relevance beyond compensation. C. the impugned non-tribal private mining leases were invalid under Andhra Pradesh's Scheduled-Area transfer regime, with later scope limits. D. the judgment created a Sixth Schedule council.

Answer: C.

Option explanations

- A: The constitutional Schedule worked through the applicable State regulation.
- B: The case directly concerned land transfer and protective governance.
- C: Correct: this states holding and jurisdictional boundary together.
- D: No ADC was created by the judgment.

Examiner trap 31: Always name the regulation-based setting and the nationwide-limit sentence.

MCQ 32

Chebrolu Leela Prasad Rao (2020) demonstrates that:

A. Scheduled Areas are outside Part III. B. the Governor may create unlimited reservation. C. all tribal preferences are invalid. D. 100 percent reservation for the specified teacher posts failed equality review despite the protective context.

Answer: D.

Option explanations

- A: Fundamental Rights continue to apply.
- B: Paragraph 5 is not an equality-free power.
- C: Targeted lawful preference remains possible.
- D: Correct: protective purpose must use constitutionally valid means.

Examiner trap 32: Protection and equality must be reconciled, not treated as mutually exclusive.

REMEDIATION GRID

Error pattern	Repair cue
Fifth/Sixth reversal	244(1) Fifth; 244(2) Sixth
actor reversal	President declares Scheduled Area; Governor organises Sixth Schedule units
assent reversal	Fifth regulation-President; ordinary Sixth council law-Governor
body reversal	TAC advises; ADC governs listed fields
PESA overstatement	use the exact verb and institution
case overstatement	state holding, legal setting and qualification

PYQS AND ANSWER PRACTICE

PYQ 1 - UPSC Prelims 2019, Q50

Under which Schedule of the Constitution of India can the transfer of tribal land to private parties for mining be declared null and void? A. Third Schedule B. Fifth Schedule C. Ninth Schedule D. Twelfth Schedule

Final-key discipline: The exact paper is locally verified, but no final official key is held in the audited local corpus. No answer letter is presented as official.

Concept resolution: Fifth Schedule paragraph 5 supports regulations restricting tribal land transfer. *Samatha* applied Andhra Pradesh's Scheduled-Area transfer regime to the impugned private mining leases. The result must not be detached from the applicable State law.

PYQ 2 - UPSC Prelims 2022, Q73

Verified routed demand: consequences of bringing an area under the Fifth Schedule.

Wording control: Exact official-paper wording and a final official key are not present in the verified local corpus, so neither is reconstructed.

Concept resolution: Scheduling preserves State executive power while adding Presidential territory, Governor reporting, Union directions, TAC advice, paragraph 5 adaptation/regulation and the PESA self-government layer.

PYQ 3 - UPSC Prelims 2023, Q39

With reference to "Scheduled Areas" in India, consider the following statements: 1. Within a State, the notification of an area as Scheduled Area takes place through an Order of the President. 2. The largest administrative unit forming the Scheduled Area is the District and the lowest is the cluster of villages in the Block. 3. The Chief Ministers of the concerned States are required to submit annual reports to the Union Home Ministry on the administration of Scheduled Areas in the States. How many of the above statements are correct? A. Only one B. Only two C. All three D. None

Final-key discipline: The exact paper is locally verified; the final official key is unavailable in the audited local corpus, so no option is inferred.

Statement audit: Statement 1 follows paragraph 6. Official criteria refer to a viable administrative unit such as district, block or taluk, but statement 2 is not converted into an answer without the final key. Statement 3 is false because the Governor reports to the President.

PYQ 4 - UPSC Prelims 2024, Q84

Consider the following statements: 1. It is the Governor of the State who recognizes and declares any community of that State as a Scheduled Tribe. 2. A community declared as a Scheduled Tribe in a State need not be so in another State. Which of the statements given above is/are correct? A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official final Set-A key: B.

Explanation: Article 342 uses Presidential notification for a State or Union Territory and parliamentary law for later inclusion or exclusion. Scheduled Tribe status is territorial, so recognition in one State need not carry into another.

PYQ 5 - UPSC Prelims 2025, Q56

With reference to the Constitution of India, if an area in a State is declared as Scheduled Area under the Fifth Schedule: I. the State Government loses its executive power in such areas and a local body assumes total administration; II. the Union Government can take over the total administration of such areas under certain circumstances on the recommendations of the Governor. Which of the statements given above is/are correct? A. I only B. II only C. Both I and II D. Neither I nor II

Official final Set-A key: D.

Explanation: State executive power continues. The Governor reports to the President and Union executive power extends to directions; neither statement accurately describes total administrative takeover.

PYQ 6 - UPSC Prelims 2026, Q57

Consider the following statements about the provisions pertaining to the Scheduled Castes and the Scheduled Tribes in India: 1. Provisions regarding the administration of the Tribal Areas in Assam, Meghalaya, Tripura and Mizoram are given in the Fifth Schedule. 2. Some tribes of India are entitled to exemption from paying Income Tax on certain incomes. 3. The Constitution provides for reservation of seats in Panchayats for women belonging to the Scheduled Castes and Scheduled Tribes. Which conclusion based on the statements is correct? A. There are two correct statements, including statement 2. B. There are two correct statements, statements 1 and 3. C. There is only one correct statement. D. All three statements are correct.

Final-key discipline: A provisional local key exists but the audited routing ledger records no final answer letter; no option is declared here.

Concept audit: Statement 1 reverses the Schedules. Income-tax Act section 10(26) is a conditional statutory exemption for specified income of eligible ST members in specified areas, not a blanket exemption. Article 243D reserves Panchayat seats for SCs/STs and at least one-third of those reserved seats for women of those categories.

ORIGINAL MAINS MODELS

Original Mains 1 - 10 marks, 150 words

Question: Explain the constitutional rationale for separate administration of Scheduled and tribal areas.

Model answer (150 words):

Differentiated administration seeks equality where land alienation, customary institutions and resource dependence make a uniform model inadequate.

Article 244 creates two designs. The Fifth Schedule uses Presidential notification, continued State administration, Governor reports, Union directions, a Tribes Advisory Council and protective regulation of land transfer and money-lending. The Sixth Schedule gives specified tribal areas in Assam, Meghalaya, Tripura and Mizoram elected District or Regional Councils with legislative, executive, judicial and fiscal powers. PESA 1996 adds self-government in Fifth Schedule areas, while FRA 2006 separately recognises forest rights.

Named evidence is the contrast between a TAC, which advises, and an ADC, which can legislate on listed subjects. This shows movement from executive guardianship toward local agency.

However, special status is not isolation: Fundamental Rights, State and Union authority, assent requirements and judicial review continue. Differentiation is justified when it protects land, culture and voice through accountable self-government rather than permanent paternalism.

Original Mains 2 - 10 marks, 150 words

Question: The Fifth Schedule is constitutionally powerful but institutionally under-used. Examine.

Model answer (150 words):

The Fifth Schedule contains strong protective tools. The President declares Scheduled Areas; State executive power continues; the Governor reports annually or when required; and the Union may issue directions. The Governor may adapt parliamentary or State laws and make peace-and-good-government regulations restricting tribal land transfer, allotment and money-lending. Regulations require TAC consultation where one exists and Presidential assent.

Yet activation depends on institutions. TAC advice is limited to referred matters. The Constitution prescribes no public report template. State extractive priorities may conflict with anti-alienation purposes, while PESA powers remain fragmented across sectoral laws.

Samatha demonstrates the protective potential of State land-transfer law read with the Schedule. Its jurisdictional limit also shows that text alone cannot replace precise local legislation and enforcement.

Reform should require evidence-based reports, fixed TAC calendars, reasoned action-taken responses, updated land records and accessible restoration remedies, while avoiding the claim that gubernatorial power is unreviewable personal discretion.

Original Mains 3 - 15 marks, 250 words

Question: Discuss the powers of Sixth Schedule councils and their constitutional limits.

Model answer (206 words):

Sixth Schedule councils are constitutionally protected territorial governments, but they are subject-specific bodies within the State and Union framework.

Legislatively, paragraph 3 covers land, forests other than reserved forests, agricultural water, shifting cultivation, village administration, chiefs, inheritance, marriage, divorce and social customs. Council laws require Governor assent. Assam-specific paragraphs 3A and 3B enlarge subjects for named councils.

Executively, paragraph 6 permits management of primary schools, dispensaries, markets, ferries, fisheries and roads, with additional functions capable of entrustment. Judicially, paragraph 4 permits village or council courts and appellate arrangements for specified disputes involving tribal parties. These forums do not displace High Courts. Fiscally, councils assess land revenue, levy enumerated taxes, maintain District or Regional Funds and regulate specified markets and non-tribal trading. Paragraph 9 provides an agreed share of mineral royalties, with disputes determined by the Governor.

The limits are equally important. Competence is enumerated, not plenary. State-specific paragraphs 12, 12A, 12AA and 12B govern application of State and parliamentary laws differently. Paragraphs 14-16 provide commission, suspension and dissolution controls. Bodoland's forty-six-member arrangement and Assam's additional subjects are bounded exceptions.

Thus, the Schedule creates real autonomy only when functions, staff, funds, assent decisions, audit and judicial remedies operate together. It is neither municipal delegation nor sovereign Statehood.

Original Mains 4 - 15 marks, 250 words

Question: PESA is a calibrated code of community power, not a universal Gram Sabha veto. Discuss.

Model answer (218 words):

PESA 1996 extends modified Part IX only to Fifth Schedule Scheduled Areas. Its strength lies in assigning different legal verbs to different decisions.

The Gram Sabha approves village-level social and economic development plans, programmes and projects before implementation and identifies beneficiaries. The village Panchayat obtains Gram Sabha certification of fund use. For land acquisition and resettlement or rehabilitation, the Act requires consultation with the Gram Sabha or Panchayat at the appropriate level. For specified prospecting licences, mining leases and auction concessions concerning minor minerals, prior recommendation is mandatory. Section 4(m) requires State law to endow powers over minor forest produce, village markets, money-lending, intoxicants, land-alienation prevention and restoration, social-sector institutions and local plans or resources.

Named evidence is the statutory contrast between 'consult' for acquisition and 'recommend' for minor-mineral decisions. Analysis follows: each verb identifies a different level of legal intensity, actor and project stage. Treating them as one veto obscures both enforceable powers and real gaps.

PESA also protects custom, cultural identity and community resources through a habitation-based village concept. However, it does not apply to Sixth Schedule areas, does not confer title under FRA and does not replace forest, environment, acquisition or mining law.

Implementation therefore requires conformity of State sectoral laws, usable records, inclusive Gram Sabhas and remedies keyed to the exact statutory verb.

Original Mains 5 - 20 marks, 250 words

Question: Analyse tribal land and resource protection through the Fifth Schedule, PESA, FRA and judicial review.

Model answer (219 words):

Tribal resource governance is cumulative: no single consultation, clearance or payment satisfies the whole legal chain.

First, Fifth Schedule paragraph 5 permits regulations restricting land transfer, land allotment and money-lending. The operative State regulation determines the actual prohibition and remedy. Second, PESA assigns consultation for acquisition and R&R, prior recommendation for specified minor-mineral decisions and State-law powers to prevent and restore alienated land. Third, FRA recognises individual, community and community forest resource rights; the Gram Sabha initiates claims and section 5 links rights with conservation duties.

Samatha v. State of Andhra Pradesh (1997) invalidated the impugned leases to non-tribal private mining companies under Andhra Pradesh's Scheduled-Area transfer regime. Its principle protects against indirect State-facilitated alienation, but later jurisdictional treatment prevents using it as an automatic nationwide mining ban.

Orissa Mining Corporation v. MoEF (2013) required Gram Sabhas to determine specified FRA-linked cultural, religious and community claims at Niyamgiri. MoEF retained the final Stage-II clearance decision. Chebrolu (2020) adds the equality boundary: protective Scheduled-Area policy cannot justify 100 percent reservation without constitutional limits.

Therefore, a lawful project must identify territorial status, apply transfer law, complete PESA and FRA stages, conduct environmental appraisal, consider alternatives and provide enforceable restoration or R&R. Judicial review secures legality and reasons; it does not create an absolute community veto or erase statutory authorities.

Original Mains 6 - 20 marks, 250 words

Question: Design an accountability reform for Fifth and Sixth Schedule institutions.

Model answer (221 words):

Reform should preserve constitutional asymmetry while making the exercise and non-exercise of power visible, reasoned and remediable.

For the Fifth Schedule, publish current Presidential Orders and habitation maps; standardise Governor reports around land alienation, PESA, FRA, services and outcomes; and require fixed TAC calendars with action-taken responses. The TAC must remain advisory, but agenda control should not make it ceremonial.

For PESA, align Panchayat, land, excise, market, money-lending and minor-mineral laws with section 4's exact verbs. Support local-language notice, inclusive meetings, independent facilitation and authenticated records. Link land and community forest resource maps to legal aid and restoration tracking.

For Sixth Schedule councils, publish council laws and assent reasons, map functions with staff and funds, strengthen audit and committee scrutiny, and train village-court personnel while preserving appeals and High Court review. Paragraph 14 commissions and paragraphs 15-16 controls should use evidence, reasons and legislative oversight, not partisan substitution.

Article 275 grants and Article 339 directions can support capacity and convergence. Integrated Tribal Development Agencies and the Scheduled Tribe Component are administrative instruments; they cannot replace TACs, Gram Sabhas or ADCs.

The final test is institutional alignment: the body that decides should possess information, resources and responsibility, while affected communities can challenge illegality. Digital systems must not exclude remote groups, and customary autonomy must remain compatible with equality, dignity and internal-minority protection.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

ADVANCED 1 - ASYMMETRIC FEDERALISM WITHOUT SOVEREIGNTY

The Fifth and Sixth Schedules are forms of territorial asymmetry inside one Constitution. The first strengthens protective supervision; the second disperses listed governmental powers. Neither removes State and Union competence, Fundamental Rights, audit or judicial review.

Advanced answer line: asymmetry is legitimate when it improves democratic fit and protects vulnerable land-resource relations while preserving reviewable public power.

ADVANCED 2 - GOVERNOR POWER, ADVICE AND REVIEW

The Schedules assign powers to the Governor, but it is unsafe to convert every reference into an unreviewable personal-discretion rule. The text, any express discretion clause, governing constitutional convention, Council-of-Ministers relationship and judicial review must be examined function by function. A strong answer criticises unexplained inaction without inventing sovereign gubernatorial policy power.

ADVANCED 3 - SIXTH SCHEDULE INTERNAL ASYMMETRY

The ordinary thirty-member model, Assam paragraphs 3A/3B, Bodoland composition, Meghalaya repugnancy rule and Tripura/Mizoram law filters show that the Sixth Schedule is a family of constitutional arrangements rather than one uniform council code. State-specific amendments must remain attached to the State and institution they modify.

ADVANCED 4 - ARTICLE 275, ARTICLE 339 AND ADMINISTRATIVE PLANNING

Article 275(1) is a constitutional grant route for ST welfare schemes and raising Scheduled-Area administration. Article 339 provides a presidential commission route and Union directions for essential welfare schemes. The Scheduled Tribe Component, older Tribal Sub-Plan terminology and Integrated Tribal Development Agencies are administrative planning or implementation devices. They may finance or coordinate delivery but cannot replace the Governor, TAC, Gram Sabha or ADC.

ADVANCED 5 - INTERNAL DEMOCRACY AND MINORITY PROTECTION

Community autonomy can reproduce exclusion within the community. Women, smaller tribes, non-tribal residents and remote habitations require fair representation, notice, records, reasons and appeal. Chebrolu supplies the equality warning; village-court and customary-law powers remain subject to dignity, legality and constitutional remedies.

ADVANCED 6 - CURRENT INSTITUTIONAL CONTROL

The MHA Lok Sabha answer dated 4 August 2026 listed ten Sixth Schedule ADCs: three each in Assam, Meghalaya and Mizoram and one in Tripura. This is a date-stamped official count, not a permanent constitutional number. Council names, boundaries and officeholders should be refreshed before quotation.

CONSOLIDATED REGISTER NOTES

Article 244 and territorial vocabulary

Rapid recall	Rule
Article 244(1)	Fifth Schedule: Scheduled Areas/ST administration outside the four Sixth Schedule States
Article 244(2)	Sixth Schedule: tribal areas in Assam, Meghalaya, Tripura, Mizoram
Scheduled Area	President declares/changes through the Fifth Schedule order route
tribal area	Sixth Schedule constitutional territorial category
Scheduled Tribe	Article 342 President notification; Parliament changes by law
Article 244A	Parliament may create an autonomous State within Assam

AREA STATUS != TRIBE STATUS != COUNCIL ORGANISATION
President President/Parliament Governor
Fifth Schedule Article 342 Sixth Schedule

Constitutional rationale and history

- Colonial excluded/partially excluded administration concentrated executive control.
- A.V. Thakkar and Gopinath Bordoloi subcommittees informed the two-model constitutional settlement.
- Fifth Schedule = protective supervision.
- Sixth Schedule = territorial self-government.
- PESA = Fifth Schedule self-government layer.
- FRA = forest-right recognition and community-resource governance.
- Best thesis: differentiated administration is legitimate as substantive equality only when it produces agency and accountability.

Fifth Schedule State and declaration control

10 STATES - OFFICIAL CENTRAL LIST RECHECKED 7 SEP 2026

AP | Telangana | Chhattisgarh | Gujarat | Himachal Pradesh
Jharkhand | Madhya Pradesh | Maharashtra | Odisha | Rajasthan

- Only notified territory is scheduled; not the whole State.
- Official criteria: tribal preponderance; compactness/reasonable size; viable unit; comparative economic backwardness.
- Criteria guide; Presidential Order creates status.
- Consultation with Governor is not consent.

Fifth Schedule institutional chain

State administration continues

- > Governor report annually / when required
- > President
- > Union directions on administration

- No automatic local-body or Union takeover.
- TAC: maximum 20; ST Assembly-representation rule; advice on matters referred by Governor.
- TAC is advisory, not legislative.
- Governor may non-apply/adapt parliamentary or State laws, including retrospectively.
- Governor regulations: peace/good government; land transfer; land allotment; money-lending.
- Consult TAC where it exists.
- Regulation has no effect until President assents.
- Do not claim unqualified personal gubernatorial discretion.

Article 275 and Article 339

Provision	Recall
275(1)	grants for ST welfare schemes and raising Scheduled-Area administration
339(1)	presidential commission on Scheduled Areas/ST welfare
339(2)	Union directions on essential State ST-welfare schemes

- Dhebar and Bhuria are the two standard commission names.
- A grant supports capacity; it does not prove outcomes or devolution.

Sixth Schedule architecture

STATE

- > autonomous district
 - > different ST areas may become autonomous regions
 - > District Council / Regional Council
- Four States only: Assam, Meghalaya, Tripura, Mizoram.
- Autonomous district remains inside State executive authority.
- Ordinary council: up to 30; up to four nominated; rest elected; elected term ordinarily five years.
- BTC special design: 46 = 40 elected + 6 nominated.
- Assam examples: BTC, Karbi Anglong, Dima Hasao/North Cachar Hills.
- Meghalaya: Khasi, Jaintia, Garo.
- Tripura: TTAADC.
- Mizoram: Chakma, Lai, Mara.

Sixth Schedule powers and limits

Power	Core	Limit
legislative	land, non-reserved forest, water, shifting cultivation, village administration, chiefs, inheritance, marriage/divorce, social customs	specified subjects; Governor assent
executive	schools, dispensaries, markets, ferries, fisheries, roads and entrusted functions	transfer/staff/funds vary
judicial	village/council courts for specified tribal-party matters	not complete replacement of ordinary courts
fiscal	land revenue and specified local taxes; funds	audit and legal limits
minerals	royalty share mechanism	not mineral ownership

- Paragraphs 3A/3B = special Assam additional subjects.
- Article 244A = autonomous-State enabling route, not current ADC status.
- State-specific paragraphs govern application of laws; never use one universal formula.
- Governor has specified assent, inquiry, suspension and dissolution/supersession controls.
- President is not routine assent authority for council laws.

Fifth-Sixth exact comparison

Fifth	Sixth
Scheduled Areas in 10 States (official list rechecked 7 Sep 2026)	tribal areas in four States
President declares territory	Governor organises districts/regions within constitutional list
TAC advice	elected council government
Governor law adaptation/regulations	council legislation
President assents regulations	Governor assents council laws
State administration + Union directions	council functions within State authority
no TAC courts/taxes	specified courts/taxes
PESA applies	PESA does not apply

Memory: Fifth gives a constitutional guardian plus PESA; Sixth gives a bounded territorial government.

PESA power code

APPROVE local plans/programmes/projects
 IDENTIFY beneficiaries
 CERTIFY fund utilisation
 CONSULT acquisition and R&R
 RECOMMEND minor-mineral licences/leases/concessions
 MANAGE minor water bodies at appropriate Panchayat level
 OWN minor forest produce through State-law endowment
 PREVENT + RESTORE land alienation
 REGULATE money-lending, markets, intoxicants
 CONTROL social-sector institutions, local plans/resources

- PESA applies to Fifth Schedule areas only.
- Village can be habitation/hamlet based.
- State law must respect custom and community-resource management.
- Acquisition-linked project planning/implementation remains coordinated at State level.
- State law should endeavour to follow the Sixth Schedule pattern in district-level administrative arrangements.
- ST seats at least half; all chairperson posts reserved for STs.

- Consultation != recommendation != approval != universal veto.
- Official control rechecked to 7 Sep 2026: nine State rule regimes listed; Odisha not separately listed; Jharkhand Rules 2025 listed.

FRA linkage

- Gram Sabha initiates and verifies claims; SDLC and DLC complete the statutory chain.
- IFR != community rights != Community Forest Resource rights.
- CFR: protect, regenerate, conserve or manage customary community forest resource.
- Section 5 links rights with conservation duties.
- FRA does not transfer all forest or mineral ownership.
- PESA asks who participates with what local power; FRA asks who holds which forest right.

Land, mining and case law

Fifth Schedule regulation

- + PESA decision-stage power
- + FRA rights determination
- + State land/mineral law
- + acquisition/R&R
- + forest/environment clearance
- = lawful cumulative decision

- *Samatha* (1997): Andhra Pradesh Scheduled-Area land-transfer regulation invalidated impugned private mining leases; always state the State-law boundary and later scope qualification.
- *Orissa Mining Corporation* (2013): Gram Sabha decided FRA-linked community/cultural/religious claims; MoEF made final Stage-II decision in light of those decisions.
- Never write "Niyamgiri = universal Gram Sabha veto".
- Royalty sharing != consent; compensation != recognition of sacred/community rights.

Article 371 and ordinary Panchayat distinction

Model	Do not confuse with
Article 371A/371G and other 371 provisions	automatic Sixth Schedule council
ordinary Part IX Panchayat	PESA habitation Gram Sabha or ADC
PESA	Sixth Schedule
hill council created by statute	constitutional ADC unless Sixth Schedule applies

- Article 243M excludes Scheduled/tribal areas from automatic Part IX application.
- PESA extends modified Part IX to Fifth Schedule areas.
- Custom remains subject to constitutional rights and valid law.

Accountability and reform recall

1. Publish current area/council boundaries.
2. Standardise and publish Governor reports.
3. Give TAC fixed calendars, evidence and action-taken responses.
4. Harmonise PESA with sectoral land, market, excise, money-lending and mineral laws.
5. Map council functions, staff and funds.
6. Set transparent assent timelines and reasons.
7. Build accessible land/CFR records and restoration remedies.
8. Sequence rights, participation, appraisal, decision and R&R.
9. Use ITDAs/convergence as administrative support, never substitutes for constitutional bodies.
10. Protect women, PVTGs and internal minorities within local autonomy.

Last-minute PYQ routes and traps

Year/Q	Demand	Control
2019 Q50	schedule protecting tribal land from mining transfer	exact paper verified; local key unavailable
2022 Q73	Fifth Schedule consequences	neutral demand only; no reconstructed wording/key
2023 Q39	notification and administrative hierarchy	exact paper verified; key unavailable
2024 Q84	who declares ST and State-specific status	official key B
2025 Q56	State executive power/Union takeover trap	official key D
2026 Q57	schedules, tax exemption and Panchayat reservation	exact paper; provisional key not recorded/inferred

1. Fifth = 244(1); Sixth = 244(2).
2. President declares Scheduled Area.
3. Governor does not declare ST list.
4. State executive power continues.
5. TAC advises.
6. Fifth regulation -> President assent.
7. Sixth council law -> Governor assent.
8. ADC ordinary ceiling is not universal composition.
9. Reserved forests excluded from ordinary paragraph 3 forest field.
10. PESA applies to Fifth, not Sixth.
11. Consultation is not universal consent.
12. Niyamgiri kept final Stage-II decision with MoEF.

Rapid Mains spines

Fifth Schedule

Article 244(1) -> Presidential territory -> State power + Governor report + Union directions -> TAC -> law adaptation/regulations -> PESA/FRA -> dormancy/accountability -> qualified protective-governance verdict.

Sixth Schedule

Article 244(2) -> district/region -> composition and Assam exceptions -> legislative/executive/judicial/fiscal powers -> Governor/State/Parliament limits -> capacity and internal representation -> bounded-self-government verdict.

PESA

Article 243M exclusion -> habitation village -> exact verbs -> sectoral-law implementation -> FRA linkage -> records/capacity/remedy -> calibrated-community-power verdict.

Land/mining

land status and State regulation -> PESA stage -> FRA rights -> environment/mineral/acquisition law -> *Samatha/OMC* with limits -> cumulative-compliance verdict.

Final rapid recall

FIFTH:

President area | Governor report/regulate | TAC advise | President assent | PESA

SIXTH:

AMTM | district/region | council laws/services/courts/taxes | Governor assent

RIGHTS:

PESA verbs + FRA claims/CFR + State land law + bounded cases

VERDICT:

protection must become accountable community agency

Amendment and case capsule

- Fifth Schedule paragraph 7: Parliament may amend by ordinary law; the law is not deemed an Article 368 amendment.
- Sixth Schedule paragraph 21: Parliament has a parallel ordinary-law amendment route for the Schedule.
- Forty-ninth Amendment, 1984: inserted the Tripura tribal-area framework, effective 1 April 1985.
- Sixth Schedule Amendment, 1988: adapted Tripura and Mizoram provisions, including State-specific paragraphs.
- Sixth Schedule Amendment, 1995: added Assam paragraph 3A powers and named the North Cachar Hills and Karbi Anglong councils.
- Sixth Schedule Amendment, 2003: added Bodoland's special composition and paragraph 3B powers.
- Samatha (1997): Andhra Pradesh transfer-law holding; not a free-standing nationwide ban.
- Orissa Mining Corporation (2013): Gram Sabha determination of specified FRA-linked claims; MoEF retained final Stage-II decision.
- Wildlife First (2019): eviction direction stayed pending procedural scrutiny; no final merits rule used here.
- Chebrolu (2020): 100 percent teacher reservation invalid; Scheduled-Area protection remains subject to equality.

Final answer spine

Define territory -> cite Article/Schedule -> identify actor -> explain exact power/verb -> add named evidence -> analyse institutional effect -> state jurisdictional or rights limit -> propose accountable reform.